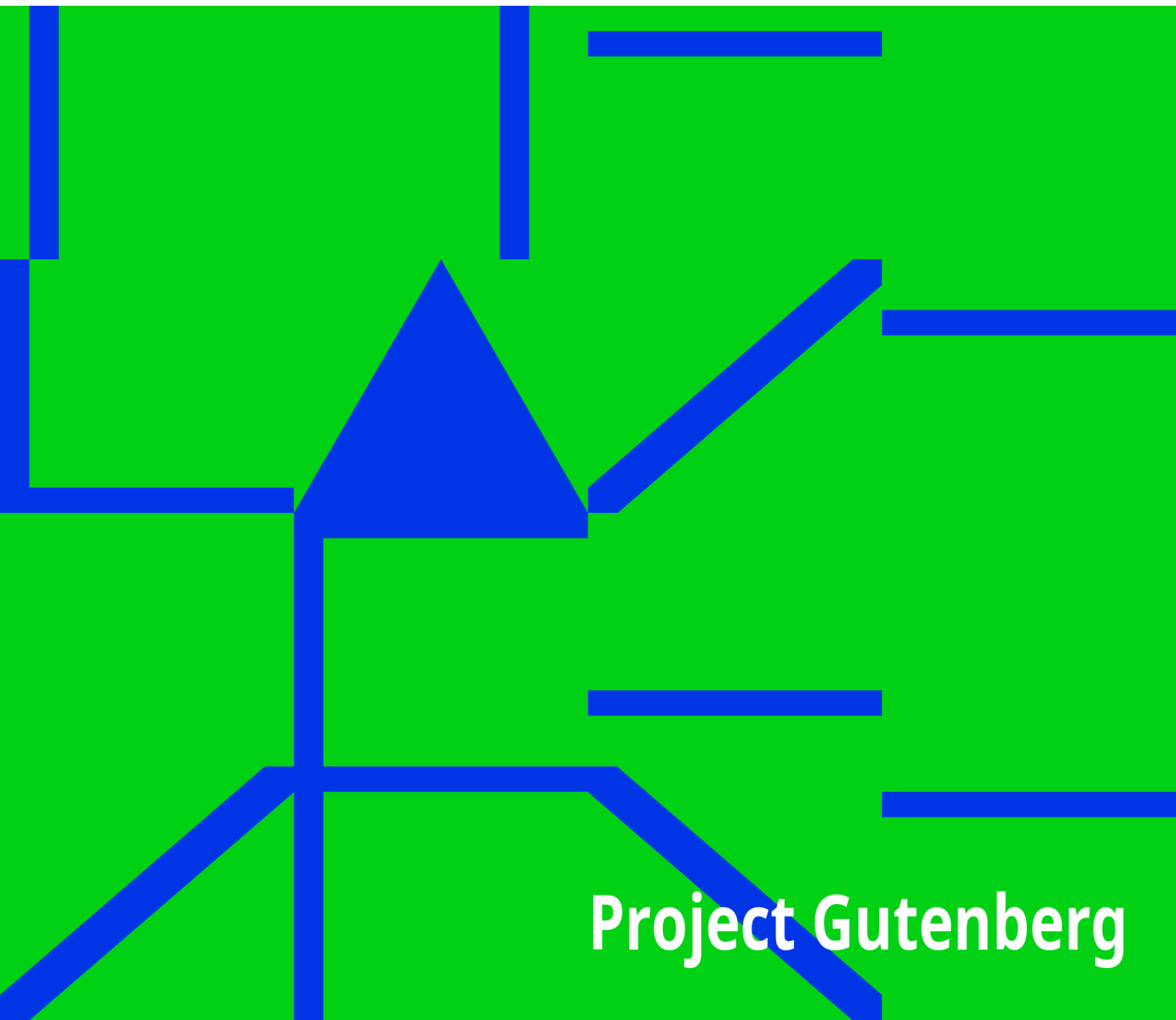


The Land of Nome

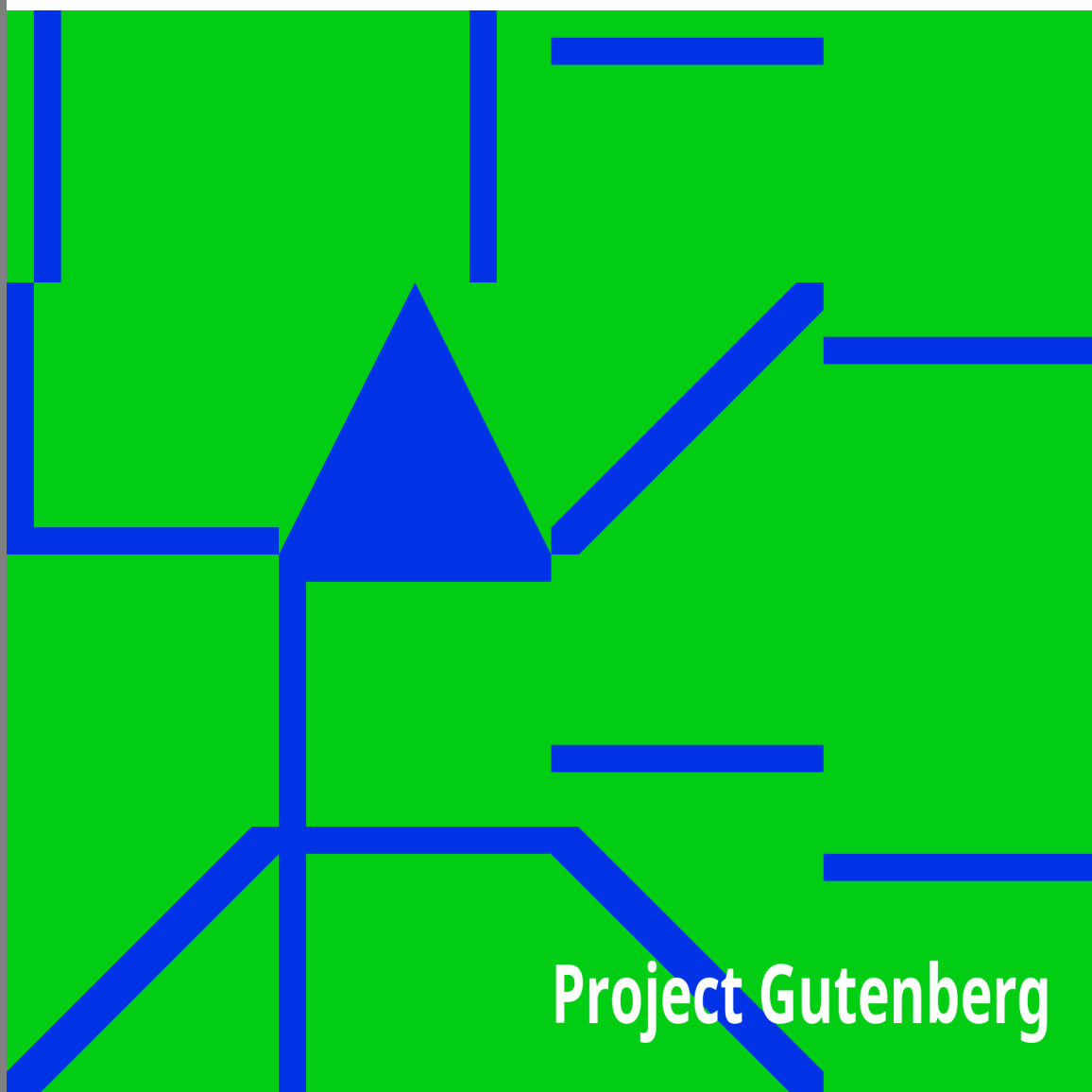
Lanier McKee

An abstract geometric design featuring a network of blue lines on a green background. The lines form a central vertical structure with horizontal and diagonal branches, resembling a stylized tree or a complex path. The lines are of varying thickness and intersect at various angles, creating a dynamic and modern visual effect.

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The Land of Nome

Lanier McKee



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The punctuation and spelling from the original text have been faithfully preserved. Only obvious typographical errors have been corrected.

THE LAND OF NOME

THE LAND OF NOME

A NARRATIVE SKETCH OF THE
RUSH TO OUR BERING SEA GOLD-FIELDS,
THE COUNTRY, ITS MINES

AND ITS PEOPLE, AND THE HISTORY
OF A GREAT CONSPIRACY

1900–1901

BY

LANIER McKEE



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PREFACE

AFTER returning from his first experience in Alaska in 1900, the author was prompted to write from his diary, primarily for his friends, a sketch of the rush to the Cape Nome gold-fields and the character of the country and its people. This account, with some modifications, forms the first half of this book. The second half, parts of which were written in the atmosphere of the situations as they arose during the following year, has been recently completed upon the adjudication of the United States Circuit Court of Appeals for the Pacific Coast, which, in effect, finally frees northwestern Alaska from one of the most dramatic and oppressive conspiracies in recent history.

The writer believes that the discovery of this El Dorado of Bering Sea has created an epoch in the development of our national domain, wonderful and unprecedented in various phases, and but little understood or appreciated by the general public. Because of its uniqueness, it is a difficult matter to treat adequately. Certain features of the subject can hardly be exaggerated; for instance: the magnitude and blindness of the stampede of eighteen thousand fortune-hunters in the summer of 1900, and the almost indescribable scenes which attended their arrival on the "golden sands"; the marvelous richness of some of the placer-gold deposits; the dreariness and barrenness of the new country; and the enormity of the judicial conspiracy, whose proceedings the United States Circuit Court of Appeals has declared "have no parallel in the jurisprudence of this country."

Special laws concerning Alaska, the local methods of mining, and various other matters pertaining to the country and its people, are dealt with herein, probably with sufficient fullness for the general reader. The book, however, as a whole, is in narrative form; and personal experiences and

character-sketches (especially in the second part) have been freely utilized for the purpose of illustrating characteristic conditions and typical people.

If the narrative in places seems too personal, this, perhaps, will be pardoned, for the reason that an account of the actual experiences of a few individuals—tame, indeed, compared with those of many others—may better suggest the atmosphere of a weird land than a mere résumé of impersonal facts. Finally, it is hoped that this book may, in some small measure, prove of service in directing attention to the past neglect and present needs of our wonderful Alaska.

L. McK.

NEW YORK, February, 1902.

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PART I

1900

I

THE RUSH IN 1900



THE remarkable discoveries of gold at Cape Nome, Alaska, situated almost in the Bering Strait, only one hundred and fifty miles from Siberia, and distant not less than three thousand miles from San Francisco and fifteen hundred from the famed Klondike, naturally created more excitement in the Western and mining sections of this country than in the Middle States and the "effete East," an expression frequently heard in the West. These rich placer-gold deposits were discovered by a small party of prospectors in the late autumn of 1898. The news spread like wild-fire down along the Pacific coast and up into Dawson and the Klondike country, and the following spring witnessed a stampede to the new El Dorado, which, however, was wholly eclipsed by the unprecedented mad rush of eighteen thousand persons in the spring ensuing. During the summer months of 1899, when, in addition to the gold along the creeks, rich deposits, easy to extract, were found in the beach extending for miles by the sea, every one at Nome had an opportunity to share in nature's unexpected gift. Consequently, upon the return in the fall, the story of the wonderful wealth of this weird country was circulated broadcast. All kinds of schemes, honest and dishonest, were devised during the winter to obtain the gold the following season, and the matter of providing suitable laws to meet the many difficult conditions and questions which had already arisen, and which would be greatly aggravated by the threatened and succeeding stampede, came definitely before Congress. Alaska, legally, is not even a Territory, though commonly so called. It is the District of Alaska, possessing a governor and other officers, but, unlike a Territory, no legislature; and it is, therefore, entirely dependent upon Congress for all legislation. The Alaska bill, under the charge of Mr. Warner in the House and Senator Carter in the Senate, consumed a great deal of the time of Congress; many of its provisions were hotly debated, and finally it became a law, June 6, 1900—in the main a satisfactory piece of legislation. By it Alaska was divided into three judicial divisions, and that which embraces northwestern Alaska and the new gold-fields was

allotted to Arthur H. Noyes of Minnesota, formerly of Dakota. If ever a position demanded an honest, able, and fearless man, it was this judgeship, which should be the guaranty of good civil government, establish a court, and disentangle and dispose of, among a mixed population largely composed of unscrupulous elements, an indescribable mass of legal matters, already accumulated and ever increasing.

When in Washington in the winter of 1899, I became interested in Cape Nome. I met there an able young attorney from the Pacific coast, who among the first had gone to Nome, where he had practised his profession with great success and secured interests in some promising properties. He was then in Washington in the interest of Alaskan legislation. The prospects for great legal complications in the new country were highly encouraging. Lieutenant Jarvis of the United States revenue service, a man of sound judgment and few words, who so signally distinguished himself in 1897 by his overland expedition and rescue of the crews of whaling-vessels ice-bound in the Arctic seas, had been the chief agent of the government at Nome the preceding year. He not only corroborated what I had already heard, but gave the impression that the story had not half been told. My brother and I decided to make the venture, and to be content with a safe return and a fund of experience, to offset the uncertain rewards of business and law practice during the dull summer months. He took up surveying, and I spent all my spare time in studying the elaborate codes of laws which Congress was then enacting for Alaska, as well as substantive mining law and all available information pertaining to that little known or understood country.

In San Francisco there were many signs of the Nome excitement. "Cape Nome Supplies," in large print, met the eye frequently. One ran across many who were going, and heard of many more who had already started for the Arctic gold-fields. All indications pointed to the advent of a small army of lawyers and doctors on the shores of Nome. But, though there was a stir in the atmosphere, the excitement was nothing compared with that at Seattle, which is the natural outfitting-point for Alaska; for San Francisco has had a

long experience in these "excitements," and treats each recurring one with comparative indifference. We took everything with us,—tents, stoves, provisions, all sufficient to enable us to live independently for three or four months,—not to mention the "law library" and surveying apparatus.

The *C.D. Lane* was the ship, named after its owner, the prominent mining man, who had backed up his belief in the genuineness of the new country by investing in it a great deal of money, and who was now taking up in his boat machinery, supplies, miners, and general passengers, some four hundred persons in all. The sailing from San Francisco, and the scenes of farewell at the dock, were both amusing and impressive. Ready exchanges of repartee between the ship and the dock were in order. Passengers held up "pokes," small buckskin bags for gold-dust, and cheerfully shouted to their friends that they would come back with their "sacks" full. But there was about it all at the same time something not altogether gay. It was no certain undertaking. The great majority, of course, would not return successful, and it was not improbable that some might not return at all.

I presume that the *Lane* carried in its personnel an average assortment of the eighteen thousand similarly brought to Nome; perhaps, however, a higher average, due to the fact that many of its passengers went legitimately to work in the employ of the Wild Goose Mining and Trading Company, in which Mr. Lane is largely interested. Nevertheless, students of human nature could there have found an ample field for study in the array of adventurers, gamblers, pugilists, alleged actors and actresses,—a nondescript male and female population, which might very appropriately be collected under the term "grafters"—an expression commonly used to designate individuals who ingraft themselves at the expense of others. One of the first men we met was V——, who shared accommodations with us. He was a practical miner, who had prospected through nearly all of the Western States and parts of Alaska, and, like the great majority, he was going to make a try at the new gold-fields, with nothing assured, but with the determination to strike out somewhere and "make it." It did not take

long to learn that the real American miner, the man who undergoes hardships and endures privations such as but few people can know or understand, is a fine, intelligent, and generous citizen, whom it is a pleasure to know.

On the 24th of May the ship steamed out of the Golden Gate and up the coast, to stop *en route* at Seattle for additional machinery, freight, and passengers, though it was difficult to figure just where the latter were to be distributed. All ages are subject to the gold fever. We met aboard ship a gentleman of our own university, a classmate of Senator Stewart, who, catching this fever in 1849, without waiting to graduate, left New Haven with Mr. Stewart in 1850, and joined the pioneers in California. He has since then been a Congressman and held an important federal office. His ship's companions likewise had been through the "early days" in the Western country, and were now going to take a look at the new El Dorado, but, I inferred, rather as investors and investigators, and not, like the majority, dependent upon what the new country might give to them. These people were worth listening to in their continual discussions as to the conditions to be met and the opportunities to be grasped in the Nome country. One of them I remember saying that there would be more broken hearts at Nome than in any other community. And there were on the *Lane* people who had staked their all upon this venture, and who confidently believed that, soon after landing, they could dig out a small fortune. A number of these, men with their wives, knew practically nothing about mining. I recall a woman of refinement from the South, who, with her two sons, recently graduated from college, was likewise in quest of a ready fortune. She had never cooked in her life, but thought it would be interesting to look after her boys while they were digging gold from the beach to empty into their mother's lap. This sentiment certainly betokened more hopefulness than common sense. A few days after their arrival at Nome, they departed for home, having had all the experience they wanted; and I subsequently learned on my return that the mother had been confined

in a hospital for some time, suffering from brain fever, a malady which it is strange she could have contracted.

The *Lane* remained six days at Seattle, and was one of the last boats to sail from that port for Nome. Everything in Seattle seemed to be labeled "Cape Nome"; it was in the air. General Randall and the military were there, expecting to sail for the North any day on the transport *Seward*, the guardians and guaranty of law and order in the new camp until the inauguration of the civil authorities. The lawyers were anxious to know the status of the Alaska bill then under debate in the Senate, especially with reference to its provisions regarding the rights to hold and mine the beach. This matter proved, after all, to be of very little consequence, as the beach had been practically worked out the preceding season and before the arrival of the 1900 stampede, about two million dollars' worth of fine "dust" having been taken from it. But the bill became a law on the sixth day of June, when we were on the high seas, and the best that the goodly sized legal fraternity represented on the *Lane* could do was to discuss the proposed provisions, and "what would you do in such a case?" There was developing aboard ship a certain nervousness to get away—people wanted to arrive among the first, and thought that they were losing valuable time; but Mr. Lane, who had been at Nome before, remarked that we should arrive there none too late, and his judgment proved to be sound.

Leaving Seattle June 3, with something of a send-off and some interesting additions to the passenger list, associations with civilization were finally severed.

As it is problematical in the spring just when the Bering Sea is free from ice, the first objective point of all vessels bound for the Arctic regions is Dutch Harbor, Unalaska, one of the numerous Aleutian Islands at the mouth, so to speak, of Bering Sea, which extend in a broken chain across the Pacific Ocean almost to the coast of Asia.

The stretch from Seattle to this Bering Sea harbor of refuge is twenty-one hundred miles, and the route is not like that of the delightful inside passage up the Gulf of Alaska, by Sitka and the Muir Glacier, replete with magnificent scenery, and calm. On the contrary, it furnishes nothing to gaze upon except the majestic and not always sufficiently tranquil ocean.

There was, of course, on the *Lane* a goodly representation of the genus "know-all," whose fortunes were really assured by reason of an infallible combination which they held or device which they had contrived. Such a combination was a certain Alaska "syndicate," from the East, whose component parts consisted of an ex-"judge," to decide the vital legal questions which might arise in the acquisition of property; an attorney, to search titles; a general manager, who declared that he didn't know gold from brass, but would soon find out the difference; a couple of engineers, and some others—not to mention clever machinery with which to extract gold, supplies of all kinds for a year at least, and the essentials of a ready-made house which could weather the fierce winter Arctic gales. It was really too good to endure long. Then, there were individuals who could demonstrate by their blue-prints just how the gold was to be dredged from the sea, it being to them a moral certainty that the gold, probably emanating from the Siberian shore, had been washed by the ocean upon the beach. One of professed large experience vehemently maintained that his theory of the beach deposits was the correct one; that is to say, the gold came down the Yukon River attached to the bottom of icebergs which were carried out to sea, and then, somehow, through the kindness of the Japanese current, the gold which they brought was deposited upon the long-extending beach at Cape Nome! Of course, as had been clearly demonstrated in the preliminary United States geological report, the beach gold had been carried down from the interior by the streams emptying into Bering Sea, and there distributed in the black and "ruby" sand.

The atmosphere became chill and penetrating, the sunsets later, the nights less dark. The crowd were kept in good nature by sparring-matches conducted along professional lines, mock trials, concerts, and recitations by

the "profession." The popular song "Because I Love You" was murdered several times daily, only to be re-resurrected. We made the acquaintance of another Yale man, Mr. C——, a member of the California bar, with whom I worked, weather and disposition permitting, over the proposed Alaska laws, and with whom I later formed a law partnership.

Early in the morning of June 11 the *Lane* went through Unimak Pass and was steaming toward Dutch Harbor, all aboard eager, with eyes straining, to see whether the vessels which had preceded us were there, or had continued up into the Bering Sea, navigation being open. To the surprise and delight of nearly all, there lay at anchor in that magnificent harbor, almost landlocked, what appeared to be the entire Nome fleet—steamers of all sizes, sailing-craft laden with lumber and black with passengers, and the United States vessels *Wheeling*, *McCullough*, *Manning*, *Rush*, and *Lawton*.

It is a weird and majestic spot. Great hills, almost mountains, barren of timber or shrubbery of any kind, and streaked with snow, come down precipitous to the water's edge. Rising beyond these are snow-covered mountains. Not a tree nor anything green is visible. The surface is somber with the all-pervading tundra, or Russian moss, which stretches over the greater part of Alaska and northern Siberia. Looking down the harbor are discovered the large warehouses of one of the great Alaska commercial and trading companies, and the ancient and unique Russian settlement of Unalaska, peopled mainly by a mixed-breed population of Russian, Japanese, and native Eskimo constituents. There are a picturesque little Russian church, and the Jesse Lee Home for orphans and foundlings, endowed by a number of charitable women in Washington.

It was quickly learned that a number of the more adventurous ships were frozen up in the ice. Others were not known about; perhaps they had found a lucky opening and slipped through. Several of the vessels then in the harbor, essaying to get through, had met with ice in quantity, and had discreetly returned. A photograph taken by a passenger on one of these latter ships, posted up on the *Lane*, tended to chill the ardor of some of the

enthusiastic souls who were for going right through and losing no time in accumulating wealth. It is safe only for wooden vessels, specially fortified for the purpose, to "buck" the ice, such as whalers and the United States revenue cutter *Bear*, which was among the first to arrive at Nome. The *Santa Anna* had had a fearful time of it, having been afire in the hold for four days, reaching Dutch Harbor, however, with no lives lost, but with all baggage destroyed.

Naturally, every one was keen to be ashore and to stroll about the island, meeting friends who had come on other vessels. Everything was "wide open." Hastily-erected saloons and gambling devices of all kinds were doing a flourishing business, patronized indiscriminately by the sexes; and there was a large run on the stores for candies and sweets generally. I trustingly gave to one of the most intelligent-looking native women some soiled clothes to wash. When returned they were scarcely recognizable, but she insisted that they belonged to me. People were almost universally complaining about the over-crowding on their ships and the poor food, so much so that we of the *Lane* began to believe that we were living strictly *en prince*. Some of the horses which had been taken ashore were in a pitifully cut-up condition, but nearly all that I saw at Nome were splendid-looking animals. Base-ball matches between nines picked from the various ships were held, with the usual ensuing umpire difficulties. After a while, however, the novelty of the thing wore away. Under the leadership of a certain "judge," prominent in the organization of townships in Oklahoma, a party of us from the *Lane*, half in jest and half seriously, staked out, pursuant to law, a town site to be known as "Lane City," and drew lots for our respective real-estate holdings. This move seemed to create some little stir, and there appeared many who wished to secure a lot in the new metropolis. I believe that I am still the town recorder; but it will be very strange indeed if the law will suffer such transient guests thus to create, and in absence maintain, a town site, and the more especially so when others claim the ownership of the property. As a matter of fact, Dutch Harbor will very probably become an important station in the Philippine and Asiatic

trade of this country; and General Randall, in a recent report, has strongly recommended the government acquisition of land there for commercial and outfitting purposes.

The weather had been somewhat misty and chilly, with only occasional gleams of sunshine. It was not disagreeable, however, and at times was very pleasant. The ships were daily setting out for the North, and the *Lane* was delaying with a number of others, awaiting the advent of an expected collier. There was excitement and curiosity, indeed, when the *Cleveland* came in, the first large vessel to discharge passengers and freight at Nome and to return for a second trip. Adventurous, she had taken advantage of a lucky break in the ice, and had safely gotten through and reached her destination. The dock was crowded with people seeking interviews with those returning on the *Cleveland*. The latter were, for the most part, a poor-looking collection, who told dire and terrible tales of the Nome "fake" and of the lawlessness and crime existing there. They said that the beach had been exhausted of its gold, and that people were leaving for home as quickly as the steamers would take them or they could scrape up enough money to pay their passage. To those especially who were relying upon getting ready money from the beach this news was not reassuring.

On June 17 the *Lane* withdrew from Dutch Harbor and headed up into Bering Sea. Whales were frequently seen, sometimes very close to the ship, and we occasionally skirted around fields of ice. A matter about which we particularly wished to know, and regarding which the testimony of experts was sharply conflicting, was just what kind of a climate is that of the Nome country. Some said that it was chilly and that it rained all the while, and that rubber boots and oilskins were always essential; a former whaling captain, with whom I could talk New Bedford, said that frequently during the middle of the day the sun was so hot as to be almost unbearable. But as to knowing anything at that time, the weather proposition was a gamble. Since the coming of the *Cleveland* there could be detected among the "syndicate" a certain lack of enthusiasm, as evidenced by a few chance remarks about the comforts of home, and a less sprightly step and challenging eye. But,

generally, on nearing the destination, the crowd aboard ship were in good spirits, though, naturally, somewhat more serious. It was now practically perpetual daylight.

The first sight of Nome City, as we steamed toward the place in the clear morning light of June 20, was impressive. It was indeed a "white city," tents, tents, tents extending along the shore almost as far as the eye could see. Scattered in the denser and more congested part of the town were large frame and galvanized-iron structures, the warehouses and stores of the large companies; and there was the much-talked-of tundra, upon which the multitude were encamped, extending back almost from the edge of the sea three or four miles to the high and rolling hills, which bore an occasional streak of snow. Not a tree, not a bit of foliage, nothing green, was in evidence. Had it not been for the chance discovery of gold in that remote spot, one passing along the coast would have considered it barren and forlorn, "a dreary waste expanding to the skies." There is not even the semblance of a harbor. It is a mere shallow roadstead open to the clear sweep and attack of the Bering Sea. Anchored from one to two miles from the shore were strung along, I may say, scores of nondescript steamers and sailing-craft, with here and there a tug towing ashore lighters filled with passengers or freight, or bringing them back empty. These tugs were so few that they could command almost any price for a day's use, and proved veritable gold-mines to their owners. When the sea is at all rough no disembarking can be done. We were in great good luck to have at that time an unprecedented spell of clear weather and calm seas, which tended to lessen the confusion and misery, which were, even under those favorable conditions, only too great.

Well, here we were finally and at last, and now to face the music! Bundled into scows, passengers were towed by the light-draft boats to within some thirty feet of the shore, and then the scows were allowed to drift in upon the moderate but wetting surf. Women were carried ashore on the backs of men who waded out to the lighters; and the men, for the most

part, completed the remaining distance in their rubber boots, or got wet, or imposed upon the back and good nature of some accommodating person.

II

THE HYBRID CITY OF NOME



THE town forms dense right at the shore, extending back and along upon damp and muddy soil hitherto covered by the deep and marshy moss. The Snake River, a sluggish, unnavigable stream, coming from the back-lying hills and through the tundra, empties into the sea where the town tapers off at the north, and thereby forms a sand-spit.

The first impressions after landing were those of confusion, waste, and filth. The shore was an indescribable mass of machinery, lumber, and freight of all kinds, the greater part of which represented fortunes thrown away. Scattered about and along the shore, looking for an opportunity to steal, were as tough a looking lot of rascals as one could meet. Upon walking into the center of the town one was greeted by a sight which beggars description. Certainly it was a case of "whited sepulcher." The whiteness viewed from afar disappeared. The main street was lined with hastily-erected two-story frame buildings, with here and there a tent—a series of saloons, gambling-places, and dance-halls, restaurants, steamship agencies, various kinds of stores, and lawyers' "offices." It was filled with a mass of promiscuous humanity. Loads of stuff drawn by horses and dog-teams were being carted through the narrow, crowded ways, and the cry of encouragement to the dogs of "Mush on" (dog French for *Marchons*) was heard frequently. Miners with heavy packs on their backs were starting out

for the claims on the creeks and into the unknown interior, but the "bar-room" miner was far more in evidence.

It was not the typical mining camp where the population for the greater part is composed of hardy, honest people who have undergone privation to reach their destination, and thereby represent, in a measure, the survival of the fittest; for this was a great impossible hybrid sort of city, accessible by steamer direct from San Francisco and Seattle, where the riffraff and criminals of the country were dumped, remote from the restraints of law and order. I heard old-timers who had visited all the principal mining camps in recent years remark that this Nome was the "toughest proposition" they had ever encountered, and I must admit that it would be difficult to picture anything tougher. However, it was soon realized that the matter to be reckoned with was that of sanitary conditions, or rather the lack of them. The general "toughness" of things and the inconveniences of getting settled had been in the main foreseen and discounted, but the rather alarming outbreak of smallpox in the camp, and the reported filling up of the "pest-house," made matters somewhat more involved and complicated. There had been a warning in Seattle that certain vessels were bringing up persons infected with the disease, and two of the suspected ships were then being held in quarantine by the vigilant government representative, Lieutenant Jarvis, but the disease had, nevertheless, secured a foothold in the camp. Undoubtedly, however, the matter was grossly exaggerated, and there were probably more deaths from pneumonia than from any other disease. The smallpox scare, nevertheless, gave the doctors a good opening, for vaccination was strictly in order. Considering in retrospect the site of the place, the total absence of any sewerage, and the great motley crowd there herded together, Nome proved to be a remarkably healthy camp—a fact due, in the main, to the prompt measures for sanitation taken by General Randall immediately upon his arrival, and the introduction into the town, later in the season, of good water conveyed by pipes from the streams beyond. During the preceding year typhoid had been very prevalent and deaths numerous. A repetition was thus happily avoided, though, during the

first days the prospects seemed indeed dismal, and the old-timers (always spoken of as "sour doughs" in Alaska) predicted that, after the rains should set in, the people were going to die like flies; and, without the least exaggeration, it certainly looked that way. I believe, nevertheless, that if the story could be told, it would be learned that more lives have been lost in that country through drowning than in any other way. Hundreds of gold-hunters, in small and unseaworthy boats, as soon as they could do so, left Nome to prospect the remoter coast and possible creeks, many of whom perished in the sudden and fierce storms which occur in the Bering Sea, and wives and mothers wondered why no letters came from Alaska.

We were four or five days collecting our seventeen packages of freight, and with V—— took turns day and night waiting for the uncertain lighters to come ashore with their mixed loads of machinery and miscellaneous supplies. I believe that between us we saw and examined every parcel which came from the hold of the *Lane*. C—— was ill aboard ship, and we looked after his freight as well. Some days it was too rough to discharge any, or a tug could not be secured or had broken down. It was good luck finally to get it all, for many were left high and dry with nothing, their vessels having returned for a second trip with cargo not wholly discharged. During these nights—or what should have been nights—we were fortunate to have extended to us the hospitality of the floor of the storehouse of the Wild Goose Mining and Trading Company, and I can very distinctly recall the stretched-out, blanketed figures lying about, the coughing of a sick Eskimo family in the attic above, and the yelling of the fellow across the way exhorting people in the ever-restless street to enter the dance-hall and see the "most beautiful women in the world."

Until our tents and provisions could be collected, it was necessary to live, so to speak, "on the town," but restaurant competition was already so keen that one could get a really excellent and clean meal for a dollar and a half or a dollar. I drank no water at all, unless it had been boiled, and then took it with tea. It is possible thus to accustom one's self; but I distinctly remember being on one occasion so thirsty as to give fifty cents for a glass

of ginger-ale, and poor at that. Despite our special vigilance in watching our freight as it accumulated on the shore, in an unguarded moment, when our backs were turned, one of the numerous thugs stole V——'s valise, containing many essentials and keepsakes of the miner which could not be replaced. The calm, manly manner in which he bore his great loss, for which my brother and I felt partly responsible, was an excellent example for us when, on the morrow, we similarly had stolen from us the sack which contained our invaluable sleeping-robcs, made from army blankets, things which we missed all summer, and the lack of which made us mentally sore. Of course, among such an assortment of persons, there were a number of murders, suicides, and indulgences in "gun-play," and it was not precisely the proper thing in the small hours to stroll carelessly about the place.

Early in the spring of 1900 a "strike" had been made at Topkok, a small stretch of beach some thirty miles east of Nome, near the mouth of a dry creek called Daniel's. Four men with primitive contrivances had taken out at least forty thousand dollars' worth of gold-dust in thirty days, when the secret leaked out, and a stampede to that quarter ensued. Small vessels of all kinds, charging from fifteen to twenty-five dollars a passenger and a good deal for freight, were making the trip, crowded, between Nome and the new diggings. It was generally conceded that all the ground along the creeks back of Nome, and the tundra, had been staked and restaked for many miles; in fact, nearly all the surrounding country had been gobbled up, on speculation mainly, after the rich discoveries on Anvil and other creeks. There had been a rush to Port Clarence, forty miles north and west, but it was common belief that no gold had been discovered there, and that it was a mere real-estate boom and a fake excitement. Cape York, thirty miles beyond Port Clarence, which had been reported rich the preceding fall, and where it was believed there would be a considerable and prosperous settlement the following season, had not panned out successfully. The beach about Nome had been already practically exhausted, so that it yielded in its best spots only a few dollars a day, an amount which does not go very far in a new country. It was, therefore, a serious question for the average miner to

decide in what direction and how he should move. Undoubtedly, the poverty of the beach, which was considered common property, was a keen disappointment to the many who had hoped to take from it sufficient wherewithal to tide them through the winter and furnish a little capital for future operations. The working season is short, scarcely three months, as operations must practically cease when the water freezes; and one must "strike it" early, or not at all. Hundreds of the adventurers immediately threw up the sponge, cursed the Nome "fake"; and, if they could pay the fare, departed for home. The steamers for the most part were returning as crowded as they came, and many of their passengers, on reaching home, exaggerating the sufficiently bad conditions which did exist, immediately circulated in the press of the country most alarming accounts of the situation at Nome, and also generally condemned as a fraud a country marvelously rich in gold, a country which they had not given even a decent trial.

Having finally collected the bulk of our freight, we put up a tent on the sand-spit across the Snake River, half a mile perhaps from the heart of the metropolis, the only ground except the beach which was not tundra. This place was already becoming thickly populated with temporary tenants like ourselves, small stores of various kinds, and lodging-tents, not to mention a fat individual near us who, decorated and bedecked with medals, hung out her sign—"Lady Barber." Our camp was about fifty yards from the ocean. Driftwood from Siberia, tossed up by unusually severe storms, lay about in quantity. V——, with his mining partner, R——, camped with us, and all took turns in guarding the provisions, cooking, and doing camp chores generally, during this period of deliberation. At times during the day it was very warm,—the sun blazed down hot,—but toward six o'clock in the evening it became chilly, and at night it was positively and uncomfortably cold; for, be it remembered, all through that section of the country, a few feet from the surface, and this, too, in the case of the tundra, perennial layers of ice and frozen ground are met. Putting a flooring to the tent, and the purchase of some reindeer-skins to fill the want caused by the "lifting"

of our sleeping-robcs and the mysterious disappearance of the folding cots, made the nights much more agreeable, and, furthermore, we were becoming inured to the climatic conditions. The midnight sun stood up in the heavens small and red like a toy balloon; and it was the perpetual daylight, aggravated through the whiteness of the tent, which, aided by the cold, made those first nights almost sleepless ones. Near us, living in a small hut fortified with driftwood and canvas, was a queer little old German-American, who was one of the pioneers in the Nome region. He was addressed as "Captain Cook," and, with a twinkle in his bright eye, he referred to his abode as his "castle." We secured his good will, and the old fellow related some of his interesting experiences. He said, now that he had accumulated some gold, he was going home in the autumn to see his "leettle wife in Kansas City," whom he had not seen for many years.

Westward along the beach, for miles, all kinds of contrivances, from the simple hand-"rocker" to complicated machinery, were being used to get the gold; but the men did not seem cheerful in their work, and most of them would freely and candidly admit that they were not making even good wages. Among the many strange sights on the beach was an enormous machine, built upon huge barrels, which some of our friends with the blue-prints were making ready to dredge gold from the sea. It represented a great deal of money. When subsequently launched, and tons of sand had been taken by it from beneath the sea, not five cents' worth of gold was found to compensate for the enormous expense and labor. Not far away, at a point which was to be its terminal, men were landing as best they could the machinery, rails, and ties for the railroad of the Wild Goose Company, which was to extend for several miles back over the tundra to the rich placer-mines on the creeks.

Hundreds were living in tents upon the beach, thanks to the clemency of the weather. Within a very short distance from our camp, with their freight piled about, were the "syndicate," and quite unenthusiastic. There was defection in their camp. Actually, the "syndicate" were selling out, and without a struggle. Several of its members very soon bade us farewell, and

pulled out for what they thought the "real thing"—quartz-mines in Oregon. And yet some of the mines on Anvil Creek even then, and with only a few men shoveling the pay dirt into the sluice-boxes, were turning out from ten to fifteen thousand dollars a day. To be sure, this was for the very few only, but, at the same time, it went to prove that the country was not a fraud. Even the dirt in those miserable Nome streets contained "colors," or small particles of gold; and it is an incongruous thought that, of all the cities of the world, Nome City, as it is called, most nearly approaches the apocalyptic condition of having its streets paved with gold!

We daily crossed the Snake River on "Gieger's Bridge" when going into the town for investigation and information. Gieger was an enterprising fellow who had built a rough but sufficiently substantial bridge at the mouth of the stream, and, by exacting a toll, he was making a pretty good thing out of it. Frame buildings of the wood of Puget Sound were going up like mushrooms throughout the town, and the noise of saw and hammer denoted that the carpenters were making small fortunes. "Offices" which could scarcely hold more than a chair and a table were for rent at one hundred to one hundred and fifty dollars a month, and these, too, frequently were merely spaces penned off in connection with stores or bar-rooms. Absurd prices were demanded for town lots of very uncertain title. I know of one instance where four thousand dollars was given for a lot on the main street. The saloon which bore the proud sign "The Only Second-Class Saloon in Alaska" seemed to be the best appointed and to be playing to the largest audiences; but it was then too early for the miners to come in with their gold dust, and the gamblers, therefore, were not doing a harvest business. We met college-bred men. A man I had known at college was doing business in a tent pending the building of a bank with safe-deposit vaults, of which he was the general manager. Another, with whom I had attended law school, and whom I had never seen or thought of since, had come to Nome in the first rush from Seattle, and now, situated in Easy Street, was one of the leaders of the Nome bar. The negro Pullman-car porter, whom we had last seen at San Antonio, Texas, on our way out from the East, reintroduced

himself to me on the street, to my infinite surprise, and wanted to know if I could give him work of some kind, which I was not then in position to do. We may have been responsible for his infection with the gold fever.

The place was really under martial law. The town government, useless and corrupt, was practically nil; and as it was believed that the federal judge, with his staff of assistants, would not arrive until August, it was the plain duty of the military to preserve order and, so far as possible, leave legal matters *in statu quo* until the advent of the civil authorities as provided by the laws which had been recently enacted for Alaska.

For various reasons which seemed good and sufficient, we decided to quit Nome and go to Council City. We knew that Mr. Lane's company had large interests in that region—that he believed in it; and we knew people on the *Lane* who had gone thither direct on reaching Nome. It was said, too, to be a healthful country, with plenty of good water and even a belt of timber. One did not hear it much discussed at Nome—people did not seem to know much about it,—but what was said was favorable. As to the means of reaching it, information was scanty, and that somewhat discouraging, but certainly the thing to do was to go by boat east about seventy-five miles to the mouth of Golovin Bay, from which point we should have to travel up shallow rivers some fifty or sixty miles to Council City. C——, who had been a pretty sick man, but who had declined to follow certain "sound advice" and return home (having joined us from the *Lane*), and G——, another fellow-passenger, thought the move a good one, and agreed to come with us. We four, therefore, making selections from our respective supplies, sold or otherwise disposed of provisions which were less essential, for the carrying of freight and supplies in that impossible country, however short the actual distance, is a very serious and expensive matter. V—— and R—— were building their boat, though they had not yet decided in which direction to go; but they agreed to communicate with us somehow during the season. A tent labeled "Undertaker," with the American flag on top, had just been put up for business across the way from us; and it seemed fitting that we should celebrate the Fourth of July by leaving Nome. This was

accomplished on the little steamer *Dora*, belonging to the Alaska Commercial Company, not much to look at, but it afforded the greatest comfort and luxury we had known since the days at San Francisco, and, furthermore, it carried drinkable water.

III

TRAVEL TO THE INTERIOR



LEAVING Nome in the evening, by the following noon we were off a small settlement comprising a few scattered sod houses, warehouses, and tents, called either by the Indian name "Chenik," or "Dexter's," after the pioneer who lived there with his Eskimo wife and children. Dexter had settled at Chenik a number of years ago, and was making money by trading with the natives, when, in the autumn of 1898, the discovery of gold at Nome made him a very rich man. He was among the first to secure valuable claims. Chenik, as I prefer to call it, is a sand-spit in the entrance to Golovin Bay, a large and shallow body of water with treacherous mud-flats, surrounded by great barren hills and the all-pervading tundra. Not a tree is to be seen, but rising immediately behind the scattered settlement is a steep hill, less somber than the rest, upon which the occasional wooden bier of a departed Eskimo makes the scene less monotonous. There is a small Swedish mission, in charge of a good man, Mr. Hendricksen, who was looking after the welfare of fifty or sixty natives there encamped. The entire picture is far more cheerful than that of Nome. Until further and more definite information concerning our destination could be gathered, we made temporary camp on dry ground not far from the shore, fortunate in being able to borrow some loose boards for a flooring. The weather certainly had

been and was very good to us, the days bright and clear and, at times, quite warm, but the nights always cold.

Generally, what was learned about the Council City country was far from reassuring. Men who seemed to be of a sturdy, reliable sort, and who said that they had been there, reported that it was not worth while, and dilated upon the arduous work of dragging one's self and one's boat up the shallow streams, eaten up by mosquitos, to find everything staked and nothing doing. I recall a Hebrew who made us a visit, and, almost with tears in his eyes, entreated us not to blight our young lives by going to Council City; and what a chapter of horrors he detailed! He maintained that we should go to Eagle City, about fifteen hundred miles distant via the Yukon River, where nuggets as large as one's fist lay carelessly about, and where there was a great field for lawyers. He insisted that we take his picture, in order that in the future we could point to it, saying, "This is the man who advised us *not* to go to Council City." It was subsequently learned that this gentleman had gone half-way to Council, and no farther. We met some, however, who believed it to be a good country, and who were making ready to set out for it. To get freight up the rivers a narrow and shallow boat is essential, and such a craft, twenty-two feet in length, was quickly and dexterously knocked together out of rough lumber by two enterprising carpenters who were doing a land-office business. Each one of us became a quarter-owner in the *Mush-on*, as the boat was christened.

Living at Chenik was not agreeable, and we were willing to tackle Council City anyhow. We four, together with the more valuable of the supplies, occupied a ten-by-twelve tent, and the water proposition was worse than that at Nome. It meant a long walk up a hill past the Indian graves and along the high cliff descending steep to the water's edge, to a crevice in it which held a bank of frozen snow. This was brought back in buckets and melted, and, for drinking purposes, boiled and filtered. Then, too, the general epidemic of sickness which prevailed during the season of 1900 among the natives throughout northwestern Alaska was here manifest. They all coughed, and while we were at Chenik there were several deaths

from a complication of measles and pneumonia. Two young Swedish women, belonging to the mission, were faithfully ministering to the sick, for the Eskimo is as helpless when ill as are the members of his household to care for him. Later, Dexter found a dozen of the unfortunates dead across the bay, and tumbled their remains into a single grave.

It is estimated to be fifty miles from Chenik to Council City—twelve miles across Golovin Bay to the mouth of the Fish River, which in delta form debouches into the bay, and the remaining distance up the Fish River and the Neukluk (the Indian name for river-flowing-from-the-west), a tributary nearly as large as the main stream. White Mountain, a spot where the Wild Goose Company has a storehouse, a depot for its mining claims above, is about half the way from Chenik to Council, and is the head of navigation for the several small, light-draft stern-wheelers which occasionally make the trip in the interest of the larger mine-owners. It lessens the strain tremendously to get a lift or a tow from one of these boats; and, having obtained the good will of the crew of the *Arctic Bird*, and strengthened it by a bottle of whisky, we got what we wanted. The *Mush-on* we had, so to speak, tarred and feathered, and made water-tight and filled with our freight, as much as it could safely contain, the remainder being stored in the *Arctic Bird*. We were about to put our boat in tow and set out, when who should suddenly appear upon the scene but our two friends of the *Lane*, H—— and T——, with their boat, just returned from Council, looking very tough and very seedy. We were exhorted to reconsider our plans, and as these were mining men whom we knew, whose judgment was entitled to respect, we promptly did so. As the freight was being taken off, though they were very good about it, the triumvirate crew of the *Arctic Bird* were not a little bit amused, for of course it looked as if we had lost our nerve at the last minute. The returned prospectors had been disappointed in a piece of ground upon which they had a "lay" or lease, which fact, in the main, accounted for their premature departure and the lugubrious view which they took.

So we camped again at the same spot and deliberated. Finally, in the evening of July 15, we set out, T—— transferring himself to us, and G—— remaining with H——, the two latter having decided to get somehow to St. Michaels, thence up the Yukon to the Tanana River, where a strike had been reported, and big game was said to be abundant. As a matter of fact, they were obliged to remain at Chenik for a considerable time on account of the quarantine which all ports had against Nome and vessels which had touched there.

The *Mush-on* was the last of the string in tow, which consisted of a small barge or lighter, containing Wild Goose Company machinery, and the boats of several others, who were also going up the rivers. My brother steered the barge, and C—— our boat, according to instructions from the captain. T—— and I, who felt used up, lounged on some sacks near the warm engine. After running upon and backing off various mud-flats, at midnight the *Arctic Bird* rested at the delta of the Fish River, and all hands drank coffee, and the whisky which represented our fare. It was, of course, daylight,—a weird, grayish effect,—and fairly, but not disagreeably, cold. Then we entered and pushed slowly up the swift and shallow stream, the mosquitos, for the first time in our wanderings to date, making themselves manifest and felt. All of us had the same thought and sensations. For the first time there was a semblance of "God's country." The beautifully clear stream,—flanked on each side by scrub willows and an occasional small spruce-tree,—whose tempting water one could dip up and drink *ad libitum*, seemed in places filled with fish, darting swiftly about above the gravel bed. Hills that appeared more like mountains loomed up in the distance, gray in the early light. There was the inevitable tundra, of course, but it seemed less all-pervading—it had finally met with some competition.

There were many curves and sharp turns where the boats in tow would have been wrecked but for the men who, wrapped in their sweaters and coats, steered them. Many times the *Arctic Bird* would run upon a riffle (where the water runs very shallow over the gravel), to be temporarily baffled and obliged to back off and seek another course. The stream

averaged hardly two feet in depth. Frequently the fraction of an inch meant progress or failure. When in plain sight and almost in reach of White Mountain, that fraction of an inch was not in our favor, and it being then three o'clock in the morning, anchor was thrown out, and all hands turned in to await the coming of the tide below, the crew pulling out their mattresses, and the "cheechawkers" (the Eskimo name for newcomers, universally used in Alaska) conforming their shapes to the various sacks and baggage. By noon we were disembarked and camped at White Mountain, a few feet from the river. Our "library" of law books seemed to weigh a ton. This was the best camping-spot yet. The scene was pretty; it seemed a healthful place; and water, plentiful and good, was very near at hand. But the mosquitos were numerous and fiercely persistent; and before turning in, the tent was sealed as hermetically as possible, and there ensued a general and complete killing of the insects that remained inside.

In the forenoon of the day following, July 17, we felt ready to start. Even if our boat could have held all our freight, which weighed perhaps a ton, it was not wise to carry it, on account of the extreme shallowness of the stream, it being then, according to the "sour doughs," unprecedentedly low, due to the unusual lack of rain. So half of the freight was intrusted to John Dejus, a French Canadian, who, with his partner, was "going up to Council anyhow," and who agreed to freight our belongings at what was a very reasonable figure, considering the toil which it entailed. A certain amount of unpacking and rearranging had to be done in order to have readily at hand cooking-utensils and food and all the comfort that could be manufactured for the trip up the rivers. The tow-line was eighty or a hundred feet long, with small pieces of rope branching out near the end to throw over the shoulder and pull from, the object being to work from the shore and keep the boat well out in the stream, in the deeper water. Three of us pulled, and one sat in the stern and steered with an oar. As a matter of fact, the fellow who had the latter occupation had the hardest time of it; and, as we progressed, there was greater enthusiasm for the end of the line than for the "steering" position, which meant a continual jumping out into the stream

and shoving the boat off from the shore, or backing it off a riffle and pulling and guiding its nose out against the swift, adverse current into water perhaps an inch deeper, which saved the situation. Hip rubber boots were essential. Undoubtedly, it was hard, exhausting work. We met others with boats less suited to the task than ours, apparently hopelessly stuck, pulling, hauling, shoving, and swearing. It was frequently necessary for some unfortunates to unload their boats, get them over a riffle, and then reload. Others would "cache" part of their freight (deposit it by the way), and struggle onward, to return later for the remainder. At first we got along very well pulling from the shore, though this meant not infrequently falling over one another when the shore developed into a bank with uneven ground, or delays and complications arose from the protruding brush. However, as the stream was very low, most of the work was done from the dry bed. At times the mosquitos were very annoying; all of us wore netting. One night, when about to encamp, almost dead to the world, these pests were the worst I have ever encountered; the atmosphere was black with them. But, on the whole, the mosquito feature of the trip had been much exaggerated; for, as we proceeded, the netting was wholly dispensed with, and at Council City, most appreciated of surprises, these insects were not at all! It almost took the heart out of one to see returning prospectors or freighters in their long, narrow skiffs, sometimes assisted by a sail, come flying down the stream, who, when hailed as to the condition of the river above, invariably shouted back that it became more difficult. And it did become more difficult soon after turning into the Neukluk River; and, furthermore, it began to storm, so that when our tent had been finally erected, it was a question whether the wind would not tear out the pegs, which had been driven into the loose gravel of the dry river-bed, and land us somewhere down-stream. But all that is now an interesting reminiscence. In spots the stream was black with salmon and salmon-trout. We passed several camps of the river Eskimos, who were drying fish, fastened in clothes-pin fashion upon an ingeniously contrived rack. The Neukluk in places was broad and shallow, or broken up into a number of streams by alternate gravel bars, or occasionally the stream broke, forming an island, and it was a question which branch to follow.

Rain for a day added to the complications, but it was not sufficient to raise the stream. As our destination was neared, the country appeared bolder, more mountainous, and it was a pleasure to see once in a while a little forest of spruce on the shore of the stream. But now the tow-line was practically abandoned, and it was a case of hauling and shoving the boat with hands and shoulders, one of us frequently going on in advance to discover a route which would afford the necessary passage, or to kick out a channel through the stones and gravel. It was a wonder to me frequently that some of us were not bowled over, tired as we were, by the strong, swift current. Sometimes it was too much for poor human nature to stand, and the one would curse the other liberally for not doing this or that, all to be forgotten and forgiven after the inner man had been appeased and rest obtained.

At last, late in the day of July 19, on rounding one of the many curves of the river, Council City, in the bright evening sunlight, burst upon the view, the prettiest, best sight that we had seen in Alaska. The peculiar light seemed to magnify it, to make it stand out very clear and distinct. There is a sudden high plateau, terminating abrupt and sheer at the stream in a rocky cliff some thirty or forty feet high, bare for the most part, but covered here and there with a growth of moss and shrubbery. This elevation tapers down to the level of the stream, where the little camp of miners marks, at the east, the point where Melsing Creek flows into the Neukluk, and also falls off at the west, where the large camp or general reservation is found, free ground for all. Along the plateau and beyond—a sprawling, scattered collection of log cabins, saloons, and dance-halls, with here and there a sod house or tent—is Council City. Back of it, to the north and west, along the foot of a bleak mountain which seems to shelter the camp, is the narrow belt of invaluable timber. The river-bed here is perhaps a hundred yards wide, but at that time the greater part of it was visible, the stream breaking above and coming down in two rapid, narrow forks touching each side of the shore. Across the river and the bar, and following its course, is a long stretch of tundra reaching out for several miles to low and barren mountains in the

south and west. In a straight line southwest, over the tundra and mountains, it is said to be eighty or a hundred miles to Nome.

In the late autumn of 1897, a number of prospectors, on being told by a native that there was gold in this section, set out from Chenik. They wintered at the present site of Council, and in the following spring staked out what seemed to them the best mining ground in the surrounding country, the richer claims being on Ophir Creek, a tributary to the Neukluk, several miles above Council City. This, therefore, is the pioneer mining camp in northwestern Alaska, but known to comparatively a few only, on account of its inaccessibility.

We passed the camp at Melsing Creek, and, exchanging salutations with the men there, who knew how we felt, proceeded slowly along the foot of the cliff, over the last riffle. Then, making fast the *Mush-on* among the other boats, we pitched our tent near the stream on the "reservation"—there at last. This experience from White Mountain to Council was the hardest physical work which any one of us had ever done or ever expects to do. The distance from White Mountain is generally estimated to be twenty-five or thirty miles. Leaving there at ten o'clock Tuesday morning, and making good average time, we were at Council at half-past eight Thursday evening, the actual working time being twenty-three hours, and the remainder being spent for rest and meals.

IV

THE INLAND COUNTRY—THE MINES

HIS place had the appearance of a real mining camp. The men one saw, for the most part, looked like the genuine article. A number said that this was



the country. Many were non-committal—they were making ready their packs for the "mush" to the auxiliary creeks above, where they thought the richer deposits were. All had to admit that it was an auriferous country, that "colors" could be found everywhere along the creeks, but the question was, and always is, Will it pay to work the ground? It frequently happens that one is the owner of a mining claim which undoubtedly contains a fortune in gold, but the unfortunate fact remains that it will cost him more money to get the gold from the ground than the value of the gold which is in it. All agreed, however, that this looked something more like "God's country." There was a verse going the rounds whose sum and substance was that the devil had to be punished, and, therefore, had been sent to Nome.

We dined that evening at midnight, our meals being somewhat irregular in those days. On the 19th of July this definite resting-spot had been found, and here we would try our luck until the close of the season. The most desirable and healthful position seemed to be up on the cliff where the log buildings, which denoted the heart of the "city," were situated. It was soon learned that the place had been surveyed, imaginary streets provided for, and town lots duly awarded. This fact was discovered the next day, after we had selected a spot for encampment and were about to level it off. Just then we were interrupted by an individual who held the proud position of town recorder, who, pleasantly enough, said that we were about to squat in the center of a *street*, and that, although he personally had no objection, our camping there would establish a precedent which might cause trouble. We shall not forget old Pete Wilson, a Swede living in a sod house near by, who came forward and told us that we might camp upon his neighboring lot until the fall, "free gratis," and who further said that he would trust us not to set up a title to the ground adverse to his. This is but one instance of the many kind and generous acts of which such men are capable; and it was the beginning of a neighborly association with this hearty old miner, who contributed in many ways toward our agreeable sojourn at Council City.

After singling out the least humpy spot, the tundra was torn and hacked off it until a layer of damp clay earth was reached. This was then pretty well leveled and ditched, in the belief that, by giving the sun a good chance at this surface, it would become ideally dry, a fine place to sleep over. But, though the sun was unusually friendly and, at times, in the middle of the day, hot, that ground remained as damp as ever. We realized at last that frozen earth and ice beneath, a barrier to the seepage, made the trouble irremediable. Two large tents, one made to open into the other, were used, respectively, to sleep and to cook and eat in, and near the side of this oblong arrangement was erected the "office" tent. A bunk put together and a folding cot, picked up at Chenik, kept us off the ground at night. It is a tribute to the general healthful conditions of that country that during the seven weeks we lived there, despite the night dampness, which seemed at first of ill omen, none of us was afflicted with even a cold. For warmth, comfort, and protection, a reindeer-skin is invaluable.

There were perhaps two hundred persons about Council at that time. Most of the miners had made their camps above, on the creeks where their claims were situated, to remain there during the working season, though many trudged back into town periodically for supplies and what not. Of course the number of saloons, with their dance-hall and gambling adjuncts, was entirely disproportionate to the population of the place, but their proprietors were looking forward to activity in the late fall and winter, when mining would cease. A number of horses and mules had been brought overland from Nome, small fortunes in themselves. People were continually straggling in, and, camped as we were on the bluff, with that last riffle into Council almost at our feet, when a splashing sound, intermingled with a bumping noise against the stones and with oaths and exhortations, was heard, one, or all in chorus, would exclaim, "Another case of 'mush.'"

Very soon, and in no modest fashion, the signs "Attorneys at Law" and "Surveyors" were flashed upon the public. There were two other lawyers at Council, but no other surveyors. It became at once necessary to examine the mining records and learn the system, if any, of indexing, with reference to

searching titles; and it was in this connection that we met Mrs. A——, the duly-elected recorder for the El Dorado mining district, which district is thirty miles square. The wife of the agent there of one of the large companies doing business in Alaska, she had come with her husband to Council a year before; had spent the long winter there; and, commanding the respect and admiration of the mining community, had been elected recorder to straighten out and keep honest records in the books, which hitherto had been in the custody of some rather suspicious predecessors. Young and good-looking, her face was both refined and strong. Some of Bret Harte's characters were suggested. With great labor and intelligence she had brought order out of chaos, and had so indexed her books with reference to creeks and individuals as to render the work of the searcher comparatively simple.

A few words concerning mining law as applied to Alaska seem now appropriate. The United States laws, which control, permit an individual to "locate" and hold as many tracts or parcels of ground as he desires, each not exceeding, however, twenty acres in area, *provided*, first, that there be a bona-fide discovery of gold; second, that the ground be properly staked or marked out; third, that at least one hundred dollars' worth of work be done on each claim every year. It is further provided that the miners may organize a district, elect their own recorder, and make rules and regulations which shall have the force of law in so far as they are reasonable and not in conflict with the federal statutes. Many perplexing questions arise, however. Our laws are too liberal and loose, leaving open too wide the door to fraud and blackmail, such as exist galore in Alaska, and which could not be practised under the carefully drawn Canadian statutes. For instance, though the law requires that a claim shall be distinctly marked or staked, there is no provision made as to how it shall be marked, nor is it made obligatory that the stakes shall be maintained. The fraud and confusion arising from this situation are aggravated in this barren country, where timber is very scarce, and the original stakes, for the most part, are made from the inadequate scrub willow found along the creeks.

Placer-mining (as contradistinguished from quartz) consists in extracting loose particles of gold from the alluvial deposits in ancient river-beds. Claims which border upon and include sections of the present streams, greatly reduced in size, are known as "creek" claims, and are generally supposed to be the richest. There is on every creek a "discovery" claim, and all the others upon it are known as Nos. 1, 2, 3, etc., "above" or "below Discovery," and are so staked and recorded. Those claims which are located farther up the bank, and which do not embrace the stream, are called "bench" claims, and are known frequently by the name of the wife or daughter of the miner, or by any fanciful designation. It was this latter class of claims which, up to that time ignored or overlooked, in the middle of the season were discovered to be in many cases richer than the creek claims. Many who had left the country, disgusted and crying out against the laws which permitted a few individuals to take up and hold an entire creek, had passed over this good ground without even prospecting it. On the other hand, more persistent miners had secured rich claims where apparently there was no ground to stake. The twenty-acre claim is usually staked out in the shape of a parallelogram 1320 feet by 660 feet. One is likely to locate rather more than less ground than that to which he is entitled. Therefore, some of these canny old boys would measure along with their tape-lines, spell out a "fraction," and immediately seize upon and hold it.

We were early impressed that there was no "fake" about this country. It was a continuation of the wonderful formation which, beginning in the west back of Port Clarence, extends eastward and back of Nome to the Golovin Bay country. Clients began to drop in. In many instances they sought free advice; and, sometimes, when the conversation had reached the legal point, it became necessary to instruct our callers that, if they desired to know anything further, our consultation fee would be exacted. It was therefore a case of pay up or move out. For Alaska, our law library was imposing and complete. Certainly it was the best in Council City. The surveyors (T—— working in as chainman) were busy.

We had been settled only a few days when First Lieutenant Offley of the Seventh United States Infantry, with thirty-odd men from St. Michaels, trudged by our camp, and it was good to see them. The lieutenant had been sent to preserve law and order and hold military court pending the passing of the country into the hands of the civil administration, and the arrival at Council of the United States commissioner, as provided by law. They camped in their round tents near the river and beyond the reservation, in our plain view, whence the various bugle-calls came to us very clearly and marked the time of day.

The world is very small. It soon developed that, after the Cuban campaign, Lieutenant Offley and my brother, by chance, had traveled together in the same train from Montauk Point, in the same seat, and the lieutenant, weak from Cuban fever, had been assisted over the ferry to New York by my brother. Neither knowing the name of the other, they next met at this jumping-off place.

Throughout his stay at Council the lieutenant performed his duties with an ability and conscientiousness which commanded the respect of the community; and there was much for him to do which was both novel and perplexing—for instance, the assumption of the judicial rôle. One of the things which tried him sorely was the case of a woman physician, who had wandered down from the Klondike country and squatted with her tent on a lot which somebody else claimed. The case was argued before the lieutenant, and the decision went against her, and very properly. She refused absolutely to vacate, insisting upon being a martyr; and, though the duty was unpleasant, for the sake of example at least, she was put under arrest, with generous jail liberties. Finally she was sent down the river with a corporal's guard to the higher authorities at St. Michaels.

Within a short time we had as much law work as we could do, and very interesting and novel, and frequently fatiguing, it was. In addition to drawing agreements and deeds, it consisted of preliminary interviews in that stately office, followed by long and laborious walks for many miles through

the timber, up and down mountainous hills, over tundra, and through streams, to the mines on the creeks beyond, there to examine stakes, witnesses, and liars. Frequently, before starting back, we would be invited to eat with the men, and a fine lot they were as a rule. Then the case had to be presented before the lieutenant and argued, with the assistance of mining-law quotations and diagrams. In many instances the lieutenant would make a personal inspection of the property in dispute. If one side appeared to be clearly in the right, the other party would be ordered off the premises; if it seemed to be an honest contention, and there was merit on both sides, the disputed ground would be tied up, a dead-line drawn, and soldiers camped there to see that neither party mined the contested territory. Either party, if dissatisfied, might appeal to the federal court then established at Nome. But we were hearing strange tales about that court. There was a persistent rumor that it was only the instrument of a great scheme to confiscate the rich mines. There was said to be a large corporation organized in the East, with influential political backing, whose guiding genius, on the flimsiest of pretexts, in violation of all the rules of legal procedure, and virtually under no bonds, was being repeatedly appointed by this court receiver of these mines.

Through a tip from a client for whom we had done some legal and surveying work, my brother and I secured a fraction of mining ground on Melsing Creek, which was staked, surveyed, and recorded as the "Eli Fraction." We four staked out also an association claim of eighty acres on a bench of Ophir Creek, which claim is called the "Rajah," and we secured other interests farther up on Ophir Creek. As a favor to friends, we would be willing to sell out our mining interests for a million dollars cash!

In placer-mining the "pay dirt" (usually found near bed-rock) is shoveled into long, narrow boxes called "sluices," varying in length, at the bottom of which are small cross-pieces of wood ("riffles"), or copper plates, or mercury, devised to catch the gold. The creek is diverted so as to send a stream of water into the "head" of the sluice-boxes, and the gold, by virtue of its greater specific gravity, is caught by one or several of the contrivances

—the stones, gravel, and dirt being carried by the current out of the boxes, and constituting the "tailings." After a certain number of hours' "run," the water is temporarily diverted, and the "clean-up" takes place; that is, the sluice-boxes are cleaned out, and the gold separated from the black sand and iron substances which usually remain with it. Water, therefore, is absolutely essential. In 1900, at first, the general complaint was "no water," although later, when the heavy rains came, it was "too much water." Placer-mining is a delicate and uncertain business, and is very hard work. Gold is not "picked up" anywhere, and mother earth yields her treasure very stubbornly. The gold of this country consists mainly of fine particles or "dust," and, compared with the Klondike, but few nuggets are found. It is, however, purer than the Klondike gold, and assays higher.

One day in August, with a large pack, and followed by an unattractive but devoted-looking dog, there came into Council F——, whom we had known on the *Lane*. He was only twenty-two years old, but financial stress had compelled him to leave his university prematurely; and he had been among the first to cross the Chilkoot Pass and undergo the rigors of the Klondike. Late in the season of 1899 he had come from the Klondike to Nome, and had acquired, as he believed, some valuable interests there, which he had been obliged to intrust to a partner, as he was carried out from Nome in the fall more dead than alive with typhoid. Returning the next year, he learned that his partner had robbed him, and that all that remained was this dog. So, with his pack and his dog, and the aid of a compass, he had walked over the mountains and tundra from Nome to Council,—sleeping, of course, in the open air and upon the ground,—in quest of employment on one of the Wild Goose properties, "No. 15 on Ophir." And he was rather a delicate-looking fellow. He dined with us, and we extended to him the hospitality of our kitchen floor for the night, for which he was very grateful. Notwithstanding his continued ill fortune, F—— seemed to be in first-rate spirits. He recited a verse which he had composed, after "Break, break, break," etc., which began thus:

"Break, broke, bust, on the ruby sands of Nome,
Break, broke, bust—three thousand miles from home!"

The way he got it off caused general laughter. He endured for two weeks work which very few strong men can keep up, working on the ten-hour night shift shoveling frozen ground up and into a sluice-box; and then, pretty well used up, but with enough money to take him home, he departed for Nome, this time by way of the river, saying that he hoped to return next spring. Certainly pluck was not lacking in his make-up.

There is no game in this country to speak of. Occasionally, however, one would scare up a covey of ptarmigan or white grouse, and of course there were fish in the stream. The government recently imported into northern Alaska some reindeer with Laplanders to care for them, and there are scattered reindeer-stations. But none of these animals were seen.

Very pretty wild flowers, many of which I had never seen before, grow out of the tundra. I have gathered as many as ten different species within a quarter of a mile of our camp. In places blue-berries grew thick, and salmon-berries were numerous.

Once in a while a letter of comparatively ancient date, passed on from Nome to some traveler, would reach us—a great treat indeed. Toward the end of August we learned the result of the Yale-Harvard race, which had been rowed the end of June. Miners would come around and ask for the loan of a paper or novel—any old thing would do.

Soon after we had become settled at Council, with intermittent fair weather, it rained almost daily, the rain coming up and clearing off suddenly; and one soon grew accustomed to the peculiarities of the climate. It was a great relief to have the nights begin to darken. After the middle of August they became quite dark, and, at the same time, we not infrequently found in the morning a layer of thin ice in the buckets of water.

On August 25 T—— left us, having received bad news from home; and September 1, to the regret of all, the military departed, as the arrival of the commissioner for the Council City district was daily expected, and presumably there would be no further need of the soldiers. A petition, addressed to the general commanding, seeking the retention of the military throughout the winter, was gotten up and freely signed, but fear of the friction which, under such circumstances, is likely to exist between the civil and military authorities, rendered it of no avail. About September 1, a heavy storm with a driving rain set in, which continued with no moderation until the 8th of the month. Dams were washed away, and mining operations ceased. It seemed at times impossible that the tents could stand up against the wind, or that the canvas could longer keep out the heavy rain. The "boulevards" of Council were in a very sorry condition. It was very dismal comfort those days. The Neukluk had become a young Mississippi, and the bar of the stream was now entirely covered. The wind blew furiously up the stream; and it was almost an unbelievable sight to behold one day a freighter sailing slowly and surely, impelled alone by the favoring wind, *up* the stream and over that riffle which hitherto had been the heartbreaker.

In view of this storm and the early approaching winter, the mining season seemed to have ended, and we decided to quit for Nome and home on the next favorable day, and began to make ready accordingly. C—— had decided that he would spend the winter at Council, and I determined to return in the following spring. A very good log cabin, nearing completion, which would answer for C——'s residence and the firm's office, was leased, and the bulk of our general outfit moved into it. It was economy for C—— to come with us to Nome to lay in his winter supplies. Sugar was selling at Council for 35 cents a pound; coffee 75 cents; flour \$7.50 a sack; kerosene \$1.50 a gallon, etc.

Sunday morning, September 9, breaking fair and favorable, burdened with only a few essentials, we set out in the *Mush-on* at half-past seven o'clock. How different it was from coming up! The boat seemed at times fairly to fly along, borne by the current and assisted by the oars. At a sudden

turn we were hailed by some freighters, and later by the *Arctic Bird*, which, taking advantage of the sudden rise of the streams, was bringing up some heavy machinery. The former handed over to us some home letters, and a batch of mail from the latter, well protected, was thrown at us and picked up safely out of the river. This mail added to the general gaiety of the situation. At half-past twelve a short stop was made at White Mountain to pay our respects to friends there; and then we pushed on, rowing more as the river became broader and the current less swift. Taking the wrong fork at the delta of Fish River, it looked for a while as if we should be stranded on the mud-flats and obliged to return to the proper channel; but by getting out and pulling the boat, which drew practically no water, we soon were well off, wading into the Golovin Bay. Then, with the aid of a bit of canvas, the favorable wind, and our oars, we reached Chenik at six o'clock in the evening, having covered a distance in ten and a half hours which had required four days in the ascent. I believe that is the record time. Fortunately, it was not necessary to wait for means of transportation to Nome, as the *Elmore*, a miserable little tub, sailed from Chenik that night. The fellow-passengers were a tough lot of men and women; and all camped together very informally that night on the floor of the cabin. The storm came up again. It was very rough, and in consequence it was a miserable, sick crowd. Having stopped at Topkok for some additional passengers, who came aboard with satchels of gold-dust, the *Elmore* was off Nome at six o'clock the following evening, bobbing like a cork in the now fast increasing storm. After some difficulty in getting into it, in truly a very thrilling fashion, we were rowed ashore in a life-boat and artistically beached through the surf, a feat which could be performed only by that crew of skilful Swedes.

McKENZIE AT WORK—THE STORM—THE UNITED STATES COURT OF APPEALS



OME had become more substantial in appearance,—there were fewer tents and more buildings,—but it was even more unsightly now that the rain had made the streets a perfect sea of mud, knee-deep in most places. The Wild Goose Company's railroad had been laid, and was in successful operation. On all sides was manifest the hustling genius of the American people. We put up at a remarkably promising place, The Golden Gate Hotel; and, after a long unacquaintance with such a luxury, rested between sheets, and gave our things a chance to dry. We were lucky to have caught the *Elmore*, for otherwise it would have meant detention at Chenik for a week, awaiting an abatement of the storm. It was a pleasure to see some of our friends again, and very interesting to learn the news and latest developments. The story of the wonderful strike of gold at Kougarok and Gold Run, back of Port Clarence, was corroborated, and, generally, the mine-owners said that the country was richer than they had ever dreamed it to be. The receivership story was also very generally confirmed. Undoubtedly there then existed in the civil administration of the Nome country as corrupt a ring of wholesale robbery and blackmail as one can imagine.

The following account may better enable the reader to appreciate the magnificence of the scheme of confiscation which at this time was in a prosperous state of realization.

There had been organized in the city of New York, under the laws of Arizona, with a capital stock of fifteen million dollars, The Alaska Gold Mining Company, of which Alexander McKenzie, a man of political influence, well known in the Dakotas, was the chief promoter and the owner of a majority of the stock. He had placed a portion of the remainder where he believed it would stand him in good stead. The main assets of this

company consisted of "jumpers" claims to rich mining property near Nome, principally situated on Anvil Creek—claims which, having already been taken or "located," had been "jumped" or "relocated" by certain individuals on some of the pretexts suggested by the looseness of our mining laws, and which in a new country so frequently constitute a species of legal blackmail. These claims, for the most part, had been purchased from the original owners by the Wild Goose and the Pioneer Mining companies, large corporations which had been formed to operate them, and other claims, on a very large scale, and which, with immense equipment at hand for future operations, were already, in the early season of 1900, engaged in taking out the gold in great quantities.

In company and on the same vessel with McKenzie, Judge Noyes arrived at Nome on the nineteenth day of July, 1900, and (to use the language of the Circuit Court of Appeals in the McKenzie contempt cases) "on Monday, July 23, before the court was organized and before the filing of any paper of any character with the clerk of the court, [McKenzie] was appointed by Judge Noyes receiver of at least four of the richest claims in the district of Nome, upon complaints made by persons the interest therein of at least one of whom had theretofore been acquired by the receiver's corporation, the Alaska Gold Mining Company." And this, too, upon papers grossly inadequate, without notification to the parties in possession, or an opportunity for them to be heard, and, generally, in total disregard of the necessities of the situation and legal precedent. The orders appointing McKenzie receiver of these claims directed him to take immediate possession thereof; to manage and work the same; to preserve the gold and dispose of it subject to the further orders of the court; and expressly enjoined the persons then in possession from in any manner interfering with the mining of the claims by the receiver. By a subsequent order, and in the very teeth of the express prohibitory provision of the statute under which the court was created, Judge Noyes further ordered that the receiver take possession of, and that there be delivered to him, all *personal* property of every sort and description on one of these claims and in any way

appertaining thereto. The receiver's bond in each case was fixed at only five thousand dollars, though at least one of these claims was then yielding about fifteen thousand dollars a day!

Thereupon, several of the parties thus held up by this highway procedure, upon proof and affidavits, moved the court to vacate these orders, which applications were denied, as were the petitions to the court for the allowance of an appeal from its orders granting the injunctions and appointing the receiver, the court holding that its orders were not appealable, and, in effect, that its jurisdiction in the matter was exclusive.

Upon the refusal of the court to allow an appeal, the Wild Goose and Pioneer Mining companies, which were represented by able counsel, secretly despatched to San Francisco, on a fast vessel, a special messenger bearing papers and affidavits disclosing the record of the court at Nome, upon which to base application to the appellate court, the United States Circuit Court of Appeals for the Ninth Circuit, for allowance of appeals and writs of supersedeas. This writ, which, in effect, nullifies the proceedings of the court below pending the determination of the appeal which it, the appellate court, has allowed, was granted in the Wild Goose cases by Judge Morrow, upon the giving of proper bonds.

Meanwhile the receiver business was in full swing, and McKenzie became known near and far as the "King of Receivers," or the "Big One." After a while, when the thing was becoming too notorious, the court evinced a certain delicacy of feeling by bestowing sundry receiverships upon selected friends of McKenzie, instead of handing them all over to the chief. Many mine-owners did not attempt to develop their ground, fearful lest, it proving rich, the receivership jurisdiction would be thereto extended. Charges and countercharges of bribery and corruption were rife, and the fight between the attorneys for the ousted parties and the "ring" became strenuous and embittered.

In the midst of the storm above referred to,—on the 14th of September,—an exciting rumor spread throughout the town that the writs from the appellate court had arrived; and this proved to be the fact. The Nome dailies (three of them) came out with such head-lines as "McKenzie Thrown out of His Job," "Death-blow to the New York Ring," and printed in full the writ commanding a stay of operations and a return of the property.

But McKenzie did not proceed to obey the mandates of the higher court, nor did Judge Noyes order him so to do, though they both had been served with all the requisite papers.

With the knowledge that the Circuit Court of Appeals was back of them, the Wild Goose people took possession of their mines. McKenzie, acting under the kind of legal advice that he wanted, maintained that the writs were irregular and void, and absolutely refused to deliver up the gold-dust which he had mined. Judge Noyes made an order merely staying all proceedings in his court, and refused to make orders compelling McKenzie to obey the writs and deliver the gold-dust to the appellants.

It became known that the receiver would attempt to withdraw gold-dust which had been deposited in the vaults of the Alaska Banking and Safe Deposit Company; and when McKenzie, in company with one of his "friends," made the attempt, he found himself surrounded by a detachment of the military and a number of the parties interested, together with their attorneys. As he was about to walk out of the building, an attorney stepped forward and stopped him, causing that remarkable person for the first time to lose his head and nerve. It looked for a moment as if there might be some gun-play, but this, fortunately, was avoided. All this happened when the storm was at its height, the miserable streets of the hybrid "city" knee-deep in mud, and when, without the semblance of a harbor, and open to the clear sweep and fierce attack of the Arctic gale, entire sections of the place were under water, and houses and wreckage generally drifting about. It was an excellent background for a dramatic incident.

The next step, therefore, was to proceed against McKenzie for contempt of court. The time was very short; for communication with that country ceases with the freezing of the sea, the latter part of October, and the distance to the appellate court and return is about seven thousand miles. At the last moment, just before we sailed, Samuel Knight (Yale, '87), who, in behalf of the Wild Goose Company, had been fighting the ring with great aggressiveness and skill, gave me, for his firm in San Francisco, the papers on which to base proceedings for contempt of court and arrest.

The storm and rain continued with unabated fury. It was impossible to get away. All the steamers had either put to sea or sought for shelter the lee of Sledge Island, to the northwest, and the shore was fast becoming a scene of wreckage indescribable. Tugs, lighters, floating piers, and all small craft lay tossed upon the beach. The sea was rising higher all the time, and soon buildings were washed away, and the front and lower part of the town were under water. All machinery which had rested upon the beach was buried in the sand. The entire sand-spit where we had first camped was washed by the surf. Lumber in great piles was strewn all along the water-front, and there were general loot and consequent drunkenness. The saying that the "Bering Sea is the graveyard of the Pacific" seemed verified. Certainly it was the most destructive and long-continued storm within my knowledge.

It was during this waiting period that we quite unexpectedly ran across V—— and R——. They had, it seemed, gone northwest in their boat for about thirty miles and tried the beach, with but little success. Then, having, as they believed, good information as to the rich strike which had been made at Bristol Bay, five or six hundred miles to the south, they had joined a party and gone thither in the small sailing-schooner which now lay high and dry upon the beach. Caught by storms either way, their experiences were of the hair-raising order, and it was only through the great skill and coolness of the captain and the mate that they were there to tell the tale. Bristol Bay had proved to be a fake, so far as gold was concerned. But V—— said that the streams were simply red with salmon, and that they found many walruses dead upon the shore, which probably, wounded by the

natives, had come there to die. He brought to us a splendid pair of their ivory tusks, in which I have a special pride. Although he plainly showed the effects of his hardships, his cheerful spirit was unbroken, although the thought of having to return unsuccessful, but with hardly a fair trial, hurt his sense of pride. We told him of the Council City country, and it was suggested that he go back and winter with C——, which proposition was quickly accepted.

We dined once for experiment at the Café de Paris, a very clean and dainty-looking restaurant, quite incongruous with its surroundings. This was frequented by some of the French "counts," German "barons," and persons "representing capital in the East," for all sorts and conditions were to be met at this motley Nome. Really, our general apparel was quite out of place. The proprietor seemed the gentleman. He said that he came from New York, and that his chef was from the Café Martin. When we remarked that we had eaten at the Café Martin, with a French gesture of delight, he exclaimed, "Zen zere ees nussing more to be said!" Most of the things were very good, but we ordered beefsteak, about which we used to talk at Council. That portion of the menu was very well disguised. As an Alaskan friend of mine once remarked on a similar occasion, it was "so tough that you couldn't stick a fork in the gravy."

On September 17 the storm finally abated, and, after an earnest "good-by and good luck" to C——, my brother and I were rowed out to the big ship *Tacoma*. We left many behind who would have given their eye-teeth to be in our boots. It seemed almost too good to be true that we should be upon that stanch vessel, in good health, and with the near prospect of enjoying the delights of a home-coming. As is frequently the case when one has been counting the days which are to lead up to an anticipated pleasure, a certain apprehension that some mishap might occur to delay departure had been felt by us during these last days in Alaska. The *Tacoma*, which before the Nome excitement had been engaged in the China trade, was officered by Scotsmen and Englishmen and manned by Chinamen. Big and steady, with roomy decks, she was crowded to the limit of her passenger accommodations.

Though the majority of the passengers had been unsuccessful, the fact of going home made all light-hearted and good-natured.

One of the first persons I saw was our Pullman porter friend, who greeted us grinning and deferentially, though we were still in that wholesome atmosphere where all men meet on equal terms and no one is better than the other until he proves it so. He said that he had been lucky in getting hold of a claim, and drew from his pocket a good-sized bottle pretty well filled with gold-dust. I learned further that he would "railroad" during the winter and return in the spring to Nome, having left behind a "good partner" whom he had so tied up that it would be impossible to be defrauded! I was flattered to know that on the occasion of his getting into a "jack-pot" (some trouble) he had hunted Nome after me for legal advice. He had many opportunities to get into "trouble" during the voyage home, as he gambled all the time.

Another acquaintance discovered on the ship was the little German pioneer "Captain Cook." We found him unkempt and disheveled, Rip Van Winkle-like, an object of commiseration, seated where he had been led. The old fellow was a very sick man, with dropsy. Quite friendless, he was unconscious of his surroundings, and looked up in a dazed, hopeless way when spoken to. It seemed as if he might not return alive to that "leetle wife in Kansas City." But later, he was taken out upon the deck and seated in the sun, which did him good; for one day as I passed he recognized me with a bright look, and inquired for my "brudder." It is to be hoped that this old man, who patiently had endured so much, safely reached his home with his gold, and received the welcome he deserved.

With bright, sunny weather after the storm, the *Tacoma*, not stopping to coal at Dutch Harbor, steamed through Unimak Pass, and, now in the Pacific, headed for Seattle over calm seas. Spending one beautiful day skirting the shore of picturesque Vancouver Island, and passing through the Strait of Juan de Fuca into that incomparable inland body of water, Puget Sound, the *Tacoma* reached Seattle on September 27, after a voyage of ten

days. Thence to San Francisco we journeyed by rail over the majestic route which traverses the base of Mount Shasta.

Immediately upon arriving in San Francisco the papers were delivered to the lawyers. The day following, the Circuit Court of Appeals, with great astonishment, learned in what respect its mandates had been held; and, shortly afterward, two deputy United States marshals were despatched to Nome on one of the last vessels sailing for that port. Thwarting the ring by reaching Nome before the ice had closed communication with the outside world, they duly arrested the receiver and brought him before the court in San Francisco whose orders he had deliberately defied. Knight has since told me of his exciting night escape from Nome in a launch, and of his being picked up at sea by a steamer, as prearranged; for, fearful of the damaging evidence which he had accumulated, the ring did its utmost to keep him from getting away, employing as a means to this end the pretext "contempt of court"!

The trial of the contempt cases at San Francisco was long and hard-fought by both sides. McKenzie has had an array of able champions at every stage of the proceedings. Application to the United States Supreme Court was made in his behalf to oust the Circuit Court of Appeals of its jurisdiction to try these cases, but the application was denied.

On the eleventh day of February, 1901, the Circuit Court of Appeals at San Francisco filed its opinion and judgment in these contempt cases. The long and able opinion delivered by Judge Ross covers the entire history of the Wild Goose litigation, and incidentally refers to Mr. McKenzie's relations with the Alaska Gold Mining Company. After referring to and commenting upon the various proceedings, which are summarized as "this shocking record," and disposing of the technical points raised by the receiver's counsel, the Court say:

"The circumstances attending the appointment of the receiver in these cases, however, and his conduct after as well as before the appointment, as

shown by the record and evidence, so far from impressing us with the sincerity of the pretension that his refusal to obey the writs issued out of this court was based upon the advice of his counsel that they were void, satisfy us that it was intentional and deliberate, and in furtherance of the high-handed and grossly illegal proceedings initiated almost as soon as Judge Noyes and McKenzie had set foot on Alaskan territory at Nome, and which may be safely said to have no parallel in the jurisprudence of this country. And it speaks well for the good, sober sense of the people gathered on that remote and barren shore that they depended solely upon the courts for the correction of the wrongs thus perpetrated among and against them, which always may be depended upon to right, sooner or later, wrongs properly brought before them." It is then adjudged that the receiver did commit contempts of court, and that for the said contempts he be imprisoned in the county jail of the county of Alameda, California, for the period of one year. In conclusion, "the marshal will execute this judgment forthwith."

In view of this deliberate adjudication and severe arraignment by a federal court of rank next to the highest tribunal of the United States, and considering also the earnest efforts made at Washington and the demands of the Pacific coast newspapers for the removal of the weak and unscrupulous judge who had manifestly served as the tool of Alexander McKenzie, his recently dethroned receiver, it was natural to suppose that effective measures would at once be taken to rectify so great an error as his appointment had proved to be. But, strange to say, this reasonable expectation was not verified.

In the United States Senate, on the 26th of February, 1901, an attempt was made to exonerate Messrs. McKenzie and Noyes. Senator Hansbrough of North Dakota characterized the former as "in every respect an honorable and responsible man," and read a letter which he had received from Judge Noyes, in which the latter elaborately declaims how honest and upright he is and always has been. Senator Pettigrew of South Dakota championed McKenzie as a man of "character," and eulogized Noyes as "the peer of any

man who sits upon the bench in any State or Territory in the Union." But Senator Stewart gave the whole affair a very thorough airing, and caused to be printed in the "Congressional Record" the complete history of the receivership proceedings above set forth, together with the opinion and judgment of the Circuit Court of Appeals.

One of the last official acts of Attorney-General Griggs was the preparation and transmission of charges against Judge Noyes, which reached their destination in June, 1901; and as only a reply with explanations was required, Noyes had a lease of official life during the mining season of 1901. His answer to the charges preferred against him was in the nature of a general denial, and a justification of his conduct in every respect.

Despite, however, its various handicaps, the Nome country, it is estimated, yielded in the year 1900 between five and six million dollars in gold—almost as much as was paid to Russia for Alaska in 1867.

Thus far no well-defined quartz ledges have been discovered, but it is not impossible that such may yet be found. Once on a steady basis, it will from year to year, like the Klondike, increase its output until, finally deprived of its only attraction and drained of its sole asset, it shall again assume the dreary, uninhabited state in which it was discovered.

Lieutenant Jarvis estimates that, in addition to the two thousand who wintered there, eighteen thousand people were at Nome in the summer of 1900. Probably six thousand remained in the country throughout the following winter, well provided for, as the government at the close of the mining season transported the remaining needy and destitute.

Before communication with the outside world closed with the freezing of the sea, about the 1st of November, C—— got out a letter which informed me of his safe arrival at Council and his settling down in the new quarters. It seems that not enough was found of the *Mush-on* at Chenik to make a toothpick. At a meeting of the "city fathers" at Council the

nomination for president of the Town-site Organization had been extended to C——, which he said he had at first declined with becoming modesty; but, finally, under pressure, and as a "public duty," he had graciously yielded and been duly elected. This news of my partner's accession to so high a dignity rather led me to indulge an expectation that, upon my return, I might be received with civic honors.

PART II

1901

VI

THE DANGERS OF BERING SEA—A DISMAL OUTLOOK



THE spring of 1901, unlike its immediate predecessor, did not bring forth general or even newspaper excitement about Nome and northwest Alaska, and the average observer of events, even in cities so closely in touch as San Francisco and Seattle, might have been warranted in concluding that the remarkable stories of gold in this latest El Dorado were but fairy tales, and that another bubble had burst. But this was very far from the truth. On the contrary, nearly as many vessels as the year before, and better ones, were scheduled to sail for Nome; more freight and horses were being shipped thither; and in the northward movement there was a confident and legitimate air which signified genuine belief in the country and ample capital to back it up.

The dreadful and discouraging reports spread during the preceding season by quickly-returned, faint-hearted fortune-hunters had served a useful purpose in very largely eliminating the riffraff and rabble which had, in great measure, contributed to make Nome in 1900 unsavory and unsafe. This year, as last, accommodations on the first sailings were purchased at a premium, or could not be had at all. Nearly every passenger had some tangible proposition in view, and, whether or not it proved successful, put himself on record as a firm believer in the wonderful hidden wealth of the country whither he was bound.

Sailing from San Francisco June 1, and stopping two days *en route* at Seattle, the *St. Paul*, after an uneventful and satisfactory voyage, on the 16th of the month halted on her long way at Unalaska. I was fortunate in sharing my narrow cabin accommodations with two good men—W——, a man of the world, with mining interests in Alaska and possessed of a lively sense of humor; the other, a very gentlemanly and well-educated "knight of the green table," who begged pardon whenever he had occasion to enter our common quarters. When I first visited the state-room, to appropriate, if possible, the best places for my belongings, a bouquet of fragrant sweet-peas thriving in the basin interrogated me as to whether I had not made a mistake. Later, W—— explained that one of his friends, in the bibulous enthusiasm of farewell amenities, on the way to the ship had purchased this beautiful but somewhat embarrassingly inappropriate gift, and had thrust it upon him. It soon adorned the saloon of the ship.

Of course, the *St. Paul* carried an assortment of curious and remarkable people—not so diversified a lot as inflicted the *Lane* a year ago; there was a much higher average of respectability. First of all, it was pleasant to know that members of the "nobility" were with us—it gave us a "tone," so to speak. They included a couple of very pronounced Englishmen, a Russian count, and a trio of Frenchmen, one of whom, an inoffensive little fellow, monocled and dressed to kill, was also a real live count. The combination lived in style and moderate hilarity in the owner's room, and were scheduled to investigate their large mining interests in Alaska. Then there was a great,

strapping hulk of a man, who wore a beard, long black hair which curled down over his coat collar, and a benign smile; and who had a cheery word for every one—of the type Munyon. He was reported to be the president of a mining company also having "large interests in Alaska," but he was dubbed the "Divine Healer," and was cursed out generally. As a rule, it is a safe precaution to steer clear of individuals who talk about their "large mining interests in Alaska" or who are "representing capital in the East." A tall, spare man, who bore the marks of having been shot through the cheek, was pointed out to me as one of the veterans of Alaska, and the one who, in the palmy days of the Nome beach, with a simple hand-"rocker" and two assistants, in twelve hours' work had made the record, by taking from the ruby sands one hundred and twenty-seven ounces of gold, or something over a thousand dollars' worth. This I verified later. We had with us also "Blanche Lamonte," the actress, of Klondike fame, and several other "fairies" and minor stars who had decided to add luster to histrionic art at Nome. It was a series of "concerts" which brought out, as it were, the *pièces de résistance*. These delightful affairs—"to cheer us on our long voyage"—were due mainly to the efforts of a tall, angular woman with short gray hair, who hailed from New York, with a down-East twang, and who, representing some newspaper, wanted a little spice for her article. She possessed, it was said, some musical attainments, and had engineered a successful entertainment the year before in so critical a metropolis as Nome. At any rate, she was the self-appointed "ship's favorite," and she *could* manage to get a good deal of animation from a little box-organ. Though not a nightingale, this life of the ship would sing a few songs of her "own composition," and playfully insist that we "all join in the chorus"; and, on one occasion, apropos of nothing whatever, she announced that she was a mining broker and would be happy to market properties for the "boys."

I remember also two big, husky, good-looking miners, who used to interrogate me about getting up the streams to and above Council City. They had a grievance against their "disagreeable" cabin-mate. This was a Swedish missionary; and the complaint was made not because he was so

"damned religious," but because he was unsociable—wouldn't enter into the spirit of things. For instance, when asked whether he was going to Nome, his only reply was that his ticket didn't read that way. Perhaps the missionary was canny in not allowing his room-mates too much leeway. And there were others.

As we approached the now familiar bold and bleak topography of Unalaska, it was apparent that the rumors of late ice in Bering Sea were well founded. The hills and slopes bore a good deal more snow than a year ago, and the atmosphere was more chill. There remained in the harbor but few vessels. The majority of the fleet had already forged into Bering Sea; but the *Jeannie*, a steam-whaler, specially fitted to "buck" the ice, was the only vessel known to have discharged its passengers and freight at Nome. This had been accomplished on the ice, during the latter part of May, two miles from the beach, the freight at great expense having been transferred ashore by dog-teams. We remained at Unalaska over Sunday, and that evening a goodly number of the ship's company attended song services at the Jesse Lee Home. This institution cares for and tries to make good men and women of the outcast and half-breed children who are gathered in from various Aleutian Islands. It is a good cause, well conducted. The poor little isolated waifs closed the exercises by singing "God be with You till We Meet Again," and it was a seriously appreciative crowd who listened and mentally echoed, "Amen."

Luck plays a very important part in getting through the ice-fields. The wind may take a sudden turn and so shift the ice as to leave an ample channel through which the ship, fog permitting, may safely pass on to its destination. But the *St. Paul*, setting out June 17 on the northward stretch, did not meet with these favorable conditions. She was soon literally "up against" the ice—not great towering bergs, but smaller ones fantastically shaped like floating islands, or swans, or whipped cream, for instance; very pretty to look at, but frequently only the frostings of large, slushy, and dangerous cakes that lurked beneath. Strange birds, somewhat smaller than penguins, sitting up stiffly and absurdly on their tails, marshaled themselves

in military rows upon the ice, and occasionally a seal poked up its snaky and inquiring head from beneath the still waters. The sea was mirror-like. Sometimes, intensified by the fog and mist which hung about, the sun shone down hot, as the vessel crept slowly through the haze and maze of her uncanny surroundings. It was a strange, weird scene, recalling the "Rime of the Ancient Mariner," about the albatross, the fog, the mist, and the red-hot sun. Several times we lay to for half a day. There was now no night. On one occasion, when the ship slowly pushed into a cake of melting ice, the contact causing the red paint to gush to the surface, a bright Irishman in the steerage temporarily relieved the monotony by shouting out, "She bleeds at the nose."

And it was becoming very monotonous. It was then June 22, and with fair conditions we should have been at Nome two days earlier. Passengers became uneasy or disgusted, and many expressed themselves to the effect that our excellent captain didn't know his business,—that we were lost, and would likely have to remain thus a month more,—and they were for "butting right through" the ice anyhow. Some day there may be a great disaster in Bering Sea when an iron ship tries to force its way through the ice. There was a close call this season. Later in the day, however, icy and uninviting Nunivak Island appeared close at hand, some four hundred miles south of Nome, and we then knew where we were. Passing at half speed along it, at what seemed a safe distance, suddenly there was a bump, followed almost immediately by a reversal of the engines, a churning of mud and eighteen feet of water, and frantic efforts to get off a treacherous mud-flat. This seemed the last straw, but the quick action of our engineer saved the day and a very dismal prospect. It was near this same island that the *Lane*, our transport of last year, struck a reef on her way "down below" (Nome lingo for Washington, Oregon, or California) a month later. Her captain, imagining himself well out at sea, was booming along in the fog at full speed and with sails up, when the vessel struck with a mighty jar and became a total loss. The few passengers and the crew were all saved, as they needed only to step off upon the shore.

The *St. Paul* anchored that night in deeper water and a dense fog. During the night fog-horns were heard in the distance, and a series of exchanges followed in order that the approaching vessel might locate us. In the morning the *Senator*, a sister ship, loomed up out of the fog, not a hundred yards distant. The captains held a shouting conversation, and, instead of being a companion in misery, we learned that the *Senator* had already discharged passengers and freight at Nome, and was now on her way *back* for another load! So, indeed, had the entire fleet, with a few exceptions.

Now knowing the course, and the wind having shifted the ice, we pushed ahead through the fog; and in the clear light of the afternoon of June 24 the unforgettable scenery of Nome presented itself, whiter on the back-lying hills and less inviting than a year ago. Mining men eyed it seriously; for it looked as if the terrible winter were lingering in the lap of spring, which meant that the (at best) scant four months' working season might be materially curtailed. And this seemed the more probable when scores of dories came out and clustered about the ship, their idle owners offering for a consideration to carry passengers ashore. It was hard to realize that one was back again at this jumping-off place of the world, having meantime covered so great a distance and lived in scenes so totally dissimilar. But it was not the same proposition to tackle as the preceding year—there never before was, and probably never will be again, a thing like that; I had now only to follow a fixed program until some happening or condition should modify or wholly alter it.

Orders were given for every one to get ashore right away that evening; and the lighters, towed by a small tug, were soon carrying the passengers thither, bag and baggage, and somewhat disgruntled. A few of us, who believed that, in the last analysis, those orders were a bluff to get rid of people, remained that night unmolested in our bunks, to visit the "golden sands" in ample time of morning. The waiters and stewards, too, were quitting the ship for good or evil; for these shifty boys—many of them pleasant harum-scarum Englishmen, younger sons of good families—had no idea of being satisfied with thirty dollars a month the remainder of their

days. I wish I could have taken down in shorthand the experiences of "Perry,"—the way he told them,—who, encouraged, would sit in our state-room, when he could, and, to our great amusement, and most entertainingly, tell his history from the time when he played the races a few years ago, in "dear old England," to date. Before departing from San Francisco he had been dining with friends in high-life fashion at the Palace, the swell hotel of the city. There wasn't a more efficient steward on the ship, and he hustled for us in good style. How these "Atlantic Ocean boys" sneer at the less advanced conveniences of the Pacific!

Well, then, in the morning, seated on a load of freight and baggage, the rest of the passengers, in a misty rain, traversed the intervening two miles of then smooth water, and deposited themselves and their hand-baggage upon the famous, and infamous, shores of Nome. The "golden sands" at that time were partly covered by dead dogs and refuse, but everything else seemed systematic and orderly; there were, happily, no longer evidences of great waste and confusion such as prevailed the year before. That the lessons of last September's storms, however, had been unheeded was evidenced by the shacks and frame buildings rebuilt down upon the beach itself, and there awaiting a like fate from another ugly assault of the Bering Sea. One of the signs of the times which stood forth familiarly, and recalled scenes of the past, was that of the "Gold Belt Dance Hall."

While A—— guarded the baggage, W—— and I went in search of a temporary abiding-place, and decided in favor of an unfurnished room at the Gold Hill Hotel, situated in a less crowded part of the town. Into this we soon placed our folding cots, blankets, and personal effects; and as the bar immediately underneath us was not then doing a land-office business, we considered ourselves lucky to be so well settled thus soon. The sea, fortunately, was sufficiently calm to permit discharging the freight, which was well cared for and put under cover by the reliable Alaska Commercial Company, to which we had intrusted it and ourselves.

The next object of concern, after having delivered certain papers and seen several of the legal lights, was to determine whether one could then proceed on the way to Council City, and, if so, how; but the inevitable conclusion was soon forced upon me that I should have to remain as cheerfully as possible in Nome until Golovin Bay should be clear of ice. Several attempts had already been made to effect an entrance there, but without success. Assuredly it was a late season. It was still impossible for vessels to reach St. Michaels or Teller, the latter being the starting-point for the new Bluestone and Kougarok districts; and the Nome dailies were issuing sensational extras with large head-lines telling that "Fifteen Hundred People" were "Starving at the Mouth of the Yukon"—at St. Michaels, one hundred and fifty miles away. Many of the neighboring creeks were yet filled with ice and snow, so as to allow only preliminary operations for mining, or none at all. The prospect was made more dismal by the stormy and cold rainy weather which then prevailed. The gale wrecked several small craft and caused the remaining steamers to put out to sea, and the thermometer ranged at about 40°. Fortunate indeed it was that these conditions did not exist the year before, when so many thousands of helpless, unprepared people were deposited upon those alluring shores. Now, however, the numerous prophets of evil preached the doctrine that last summer had been an exception, and that this sort of thing would continue throughout the open months, which, fortunately, it did not do.

At the new and well-appointed post-office I was much impressed and pleased to find a type-written letter from my partner, dated at Council City the middle of June, which told of his good health and settlement in our new quarters. This letter had been brought overland before the melting snow and ice made it unsafe or impossible to cross the intervening streams. Previous to this, my last letter from him, received at San Francisco just before sailing, bore date of February 13.

Nome seemed very orderly, much improved, and more substantial in general appearance. It had been duly incorporated as a city. About a mile of the principal streets had been boarded over (a great improvement), though

at that time, in front of our hotel, the horses sank belly-deep in muck and mud as of yore. The banner sign, "City Morgue," had now assumed more modest proportions; people who had wintered at Nome looked strong and well; and the doctors somewhat plaintively said that the camp had been "disgustingly healthy." The majority of the deaths were those of too venturesome, or poorly equipped, travelers or prospectors who had perished from cold. But the average individual who had spent the winter there had lived very comfortably, with plenty of good things to eat and drink, and I was informed that the place had been very gay "socially." Some were in fine feather, others hopeful, and but few discouraged.

One of the characters then at Nome, known and unmistakable from the Klondike down, was "Mother" Woods, in her sunbonnet, abbreviated skirts, and "mukluks" or native sealskin boots. A woman of middle age, she had participated in almost every gold stampede, enduring as much as a man; and she swore like a trooper. But in the winter she had nursed and cared for the sick and frozen with the greatest tenderness, it was said; in recognition of which a voluntary contribution had been made to enable her to appeal a case which in the court below had gone contrary to her mining interests. I had, of course, heard of "Scotch verdicts"; but during the winter months the Nome public had coined an expression new to me in referring to the "Scotch whisky decisions"; and, without regard to the possible ancestry of the learned court, it was a lamentable fact that its Scotch had been potent in making a rye business of justice.

W—— was heading for Solomon River,—about thirty miles distant on the coast east of Nome,—and, believing that he had a good opportunity to reach it with some friends on the *Ruth*, a steam-schooner, he gladly pulled out from Nome on the 27th of June, while we wished him the wealth of "King Solomon's mines."

The days passed by; the inhospitable weather continued; and still there was no certainty of getting into Golovin Bay to travel up the streams to Council City. It was becoming a rather serious matter, and it would have

been natural for my partner to suppose that I either had been prevented from coming altogether or had been indefinitely delayed by some mishap. I had seen all the people I cared to see, was heartily sick of the town, and the Gold Hill Hotel, thinly partitioned and put up on the cardboard plan, was not running a very effective heating-plant.

One day there shuffled uninvited into the room, a trifle in his cups, a miserable-looking individual who announced that he was "Uncle Billy" and that everybody knew him, and then proceeded to jabber his tale of woe. He didn't explain how or why it had happened, but merely whimpered that he had been "shot to pieces" during the winter. By way of illustration, and to prove this statement, after pointing to one useless arm he went down into his pocket, and pulling out a "poke" (miner's pocket-book), emptied from it a large-sized bullet and a considerable piece of bone, adding, with attempted humor, that it wasn't everybody who carried his bones about with him in that way. It seemed that he was being made to do menial work in the kitchen, whereas he was really a millionaire, to substantiate which this delightful person again resorted to his wardrobe and drew forth a number of crumpled and dirty mining papers. Appearing on the scene soon after I had finished reading in "The Crisis" of "Uncle Billy" (General Sherman), this pitiful result of one battle made an impression by contrast.

The popular saloons and gambling-houses were crowded, but the stakes were low (for mining operations had not yet begun, and "dust" was not coming into camp), and probably half of the attendance was due to the warmth of these places. All the games were going—roulette, vingt-et-un, faro, poker, stud-poker, Klondike, and craps. There was usually a platform in the rear supporting a piano and a phonograph, and serving as a stage from which sirens would torture the popular ballads, whose agony penetrated the street.

I should have enjoyed attending the sessions of the court, but the judge and court staff were then on the high seas, going to hold a short term at St. Michaels, pursuant to law. In a more or less desperate attempt to fill in the

tedious waiting-time, A—— and I one evening sought amusement at the "Standard Theater." The entertainment was not calculated to delight delicate sensibilities.

The glorious Fourth was appropriately celebrated by ample decoration with the flag throughout the town and a very creditable parade, which, headed by a company of sturdy regulars from the neighboring military post, was followed by an A1 fire-engine drawn by fine horses, three uniformed hose companies, and a score of lively little school-children. Such are the enterprise and conquering spirit of our people!

VII

UP THE STREAMS—AN EVENING AT JOHNSON'S CAMP



Y this time it was certain that Golovin Bay was open. The Klondikers and Yukoners, a sturdy lot of earnest men and not looking a bit starved, were pouring into town from St. Michaels, and the report came that ships at the northwest were unloading at Teller and Grantley Harbor. Nothing loath, I got away from Nome in the evening of July 5 on the small steamer *Elmore*, which I did not remember with especial relish. The floor accommodations had meantime been supplanted by bunks, and the trip to Golovin Bay, which we reached the following afternoon, was not half bad. Just before anchoring, we came alongside of the *Ruth*, which lay there absolutely helpless, her steering-gear smashed beyond redemption. Much surprised to see W—— on the derelict, I reached over and shook his hand, and then heard his little tale of woe. When he had left Nome, nine days before, it was too rough to land freight at Solomon River, and, having a number of passengers and considerable freight aboard for Golovin Bay, the *Ruth* had proceeded thither, only to run into the ice, smash her rudder, and be almost capsized by the powerful outgoing floes while held tight in the ice. Nearly the entire crew had promptly deserted, and only the captain, a sulky engineer, and a few enforcedly faithful passengers remained. (One of the numerous little hard-luck stories of life in the Arctic "gold-fields.")

It was fortunate to find at Chenik the *North Star*, a small stern-wheeler river boat, with whose captain a number of us quickly made satisfactory arrangements for immediate transportation to White Mountain, the half-way point to Council City. She soon, duck-like, flopped over to the side of the *Elmore*; our freight was rustled into her with all despatch; and, at eight o'clock in the evening, pretty well laden with passengers and their effects, this gem of the ocean, under the peculiar care of a crazy old Swede and his motley crew of three, was puffing and breathing hard and pushing her clumsy way across the bay toward the hidden delta of the Fish River. It was a matter of lying about the primitive machinery, by the boilers and wood fuel, to keep warm, and listening to a not too delightful crowd of alleged miners swapping lies about the country. Sleep, of course, was out of the

question; a place to stretch out was not available except in the adjacent bunks of the crew, and on inspection of these I decided that I would rather not. It would not have seemed at all natural, or homelike, had we not proceeded, about midnight, to run into fog and upon the mud-flats. Only two and a half feet of water were requisite to allow the vessel to navigate, but in order to get that depth it was necessary to keep strictly in a zig-zag "channel," regarding whose location our navigator was not precisely expert. While we lingered upon the mucky bottom, a section of the crew, provided with a pole and a boat, under the orders of the captain (expressed forcibly and picturesquely,—not to say profanely,—à la Suède), would complete circles ahead and about the *North Star*, shouting back, "One foot," "Two," "Two and a half," "Three," according as they sounded the depths. But we did finally, somehow, get into the Fish River; and, after needlessly butting the banks several times and smashing the tender, our little steamboat the following afternoon rested on the shore at White Mountain, and another transfer of freight promptly ensued. How unpleasantly familiar one's boxes and bags become by the time they have reached their final destination! White Mountain showed plainly enough, in its wholly demolished structures and twisted log cabins, the sweeping force of the ice-jam and flood which had rushed down upon it, about the middle of June, on the breaking up of the streams. Almost providentially, it seemed, a saloon remained serenely intact in the very center of the havoc.

So far so good, but the only way to travel in this country is, if possible, to shove right through somehow, and recuperate when the ultimate goal has been gained. Together with two others who were making the trip to Council, I made terms with "Ed" Trundy, a freighter, to carry my ton and a half of stuff the remaining twenty-five or thirty miles for three cents a pound. His equipment for transportation consisted of a long, shallow, forty-five-foot boat, two river poles, an assistant, "Louis," five dogs, and a swearing vocabulary which was universally recognized as being the most replete, ornate, and frequently employed in that section of the country—which is saying a great deal and paying a very high compliment to Mr. Trundy. But,

then, that robust gentleman had enjoyed and profited by many advantages of training and environment not shared by his less fortunate competitors. Born in the backwoods of Maine, he had been a lumberman, had shipped before the mast as seaman, driven a hack in Boston and a street-car in New York, had freighted on the Yukon, and it is possible that he may have driven a mule-team in Texas. "Ed" steered the craft, and, when the going was good, those dogs, under the special charge of Louis, pulled the entire load of three tons up the swollen streams just about as fast as the rest of us cared to walk. We rode when the dogs rode, that is, when it was necessary to pole over a slough or cross the stream. The recent freshets and still melting snow in the hills and mountains beyond made shallow rivers of the streams,—in places, however, deep,—and thus, to a large extent, obviated the heartbreaking and back-breaking experiences of the preceding year.

The plan of travel was to proceed only a few miles that evening to a temporary encampment where Trundy had arranged to pick up some additional freight, and where we should spend the night, making an early start in the morning. Arrived there, I imposed upon the good nature of some agreeable fellows, lugging my blankets into their tent and spending the night with them, packed like sardines. We made an early start in the forbidding morning, our number being increased to nine, and not a very choice company either. It was soon apparent that the expedition included two parties who claimed the same mining property, toward which they were heading with all despatch, and that there was bad blood between them. Suspicious looks and whispered conversations were corroborative evidence.

At two o'clock we arrived at Craft's Road-House, near the mouth of the Neukluk River, where a halt was made for dinner. This was a good-sized log cabin, with scrupulously neat interior, kept by Mr. and Mrs. Craft, but the Mrs. was the presiding genius. Photographs of their restaurants at Chicago and Dawson, and of family and friends, stiffly yet fondly grouped, adorned the walls. And what a good dinner they gave us—a perfect gorge for one dollar, and cheap at five times the price! Louis was taken ill here with cramps in his arms and legs, due to overwork and wetting, but only

after much persuasion consented to take off his boots and lie down on the reindeer-skins by the stove. While he was recuperating, the good-natured and loquacious hostess, seated behind (and with elbows upon) the bar, entertained us; for Mrs. Craft, as the name implies, knows her business and enjoys the reputation of being a "fine talker." Her entertainment for this occasion was a somewhat broad and general discussion of the marital obligations which should exist between "squaw-men" and their Eskimo (truly enough) better halves, citing her observations of the Eskimo code of ethics and certain instances where the informality of existing relations had been made conventional by voluntary appearance before a United States commissioner and a performance of the proper ceremonies by that officer.

Louis gamely enough responded, and soon the expedition, in rain-and-wet-proof armor of slickers and hip rubber boots, set out to gain that night Johnson's Camp, a couple of vacant cabins on the Neukluk, free to all transients. High up on the banks, extending frequently back upon the flats, the willows and brush, and sometimes the small spruce timber, lay bent and crushed to the surface, shredded and skinned, almost machine-like, by the ice-jam which, not long before, had roared and swept down the streams to the bay. Old landmarks in a new country continually presented themselves, recalling vividly the experiences of the summer before and the companions who had shared them in the "mush" up the rivers to Council—"rivers" then by courtesy only.

The origin and derivation of the word "mush" have been given heretofore, but will bear further reference. It is perhaps the most frequently used word in northwestern Alaska, being universally employed for "walk," "tramp," "travel," etc.; and in view of the generally prevailing conditions of snow, rain, muck, mud, and moss, the student of philology may find in this expressive word a rare and precious instance of onomatopœia. This little digression in the narrative has not been made chiefly for the purpose of exhibiting familiarity with Greek, but rather as an introduction for modestly recording a compliment which is treasured by the narrator. Perhaps it wasn't known that I had been through that sort of thing before, only more so, and

perhaps, being built on a fairly long and economical plan, I had a peculiar advantage in that kind of travel, but, at any rate, I felt that I had received a very high compliment, delicately expressed, when an old-timer in the party, with unnecessary calls on the Almighty, told me that I was a "musher from hell."

At nine o'clock at night we climbed the steep, slippery, slimy bank to the two cabins which constituted Johnson's Camp, to find the one apparently inhabitable cabin already occupied by four as tough-looking specimens of humanity as ever came down the Yukon. But that didn't make any difference, except that they had a first lien on the soft spots of the floor to the extent of four times six feet by two. They had a cheerful, warm fire cracking in the stove, the floor was dry, and the outlook for a good rest was excellent. But it was not thus to be. Thirteen in the cabin taxed its capacity. Another party who sought the same shelter, blocked at the entrance by a full house and a stony stare, departed. The cooking began to mess things, and the carelessness and profuseness of the gentlemen's expectoration,—gently but diabolically aggravated by the now general leakage through a sieve-like roof,—eliminated from my mind any intention which I may have had of placing my blankets and myself upon the floor. In fact, it was difficult to locate one's self, sitting or standing, so as to avoid a trickle of water down the neck. Here was a good time for a bottle of whisky to get in its work, and Louis needed a stiff drink, for he was pretty ill. So, round it went throughout the choice circle, and back it came to me, empty enough.

Three of us decided to sit out the night about the fire; the rest in grotesque fashion lay stretched upon the floor. As a David Harum sort of miner once said to me, "The more you see of a certain class of people, the better you love a dog"; and about that time I felt very kindly disposed toward the unjustly-rated lower animals. It was generally agreed, before the turning in began, to make a four-o'clock start in the morning, and about the only thing which the three of us who sat together had in common was the intention that such a start should be made. As we poked and added to the fire, and dodged the drip, the would-be sleepers showed their disapproval of

the noise and heat by moving and muttering, and the semiconscious, but unrivaled, Trundy rounded out a series of epithets which left no doubt as to his exact sentiments. One of the figures raised itself and basted the head of a snoring Yukoner. Louis, in his dreamy wanderings, with unnecessary vigor, but through force of habit, attacked the poor dogs by references to their maternal ancestry. One of the two who kept me company, whom I despised more than the other, of wizened physique and a mean eye, fearful lest his goods might spoil, occasionally migrated out into the early morning light and wet; and, slipping and sliding down the mucky incline, mushed over to the boat, lifted the canvas, and investigated the quantity of water in the craft. Then, perhaps having bailed a little, he would climb back again to enjoy the hospitality of the cabin and to intimate that he was doing my work as well as his own. Having seen his supplies go into the boat first, and on the bottom, I could remark that I would take the chances of having my goods damaged. The best we could do was to rouse the reluctant crowd at five o'clock, and, after a delectable breakfast, served as you snatched it, get under way shortly after six to complete the remaining six or seven miles to Council City. It had not been a pleasant evening. Perhaps the night spent on the *Elmore*, the year before, was, on the whole, a more disagreeable experience; but, nevertheless, the writer believes it would require a combination of the genius of Poe and Kipling to paint a fitting word-picture of that sojourn at Johnson's Camp, on the Neukluk.

The stream was now very high from the rain which had just ceased. The freighters had their hardest work ahead of them; for the sloughs became more frequent, the water extended well up to the brush and spruce, and until we reached a point a few miles below Council there was but little footing for the dogs. The rest of us, leaving the meanderings of the river, struck out overland as straight as possible for Council. I caught some of them eying me like a hawk, and knew that they suspected that I had a retainer from the gentlemen with whom I had so agreeably passed the night. Having made a wide detour inland through mossy swamp and brush, we came to Mystery Creek, which was adorned in places with deep banks of solid snow and

glaciers. This crossed, and having gained the open, that weird, familiar landscape presented itself—the bleak hills back of Council, rising to the dignity of mountains, fringed at the base with a growth of small timber, and approached by a plain of tundra. As Sam Dunham, in one of his matchless Alaskan poems, with fine alliteration says:

"We traversed the toe-twisting tundra,
Where reindeer root round for their feed";

and if there is any contrivance of mother earth's which is calculated to sap man's remaining energy, it is this plodding over the Russian moss, avoiding the stagnant pools upon its surface, and stepping and reaching from hassock to hassock,

Sometimes as soggy as sawdust,
More frequently soft as a sponge.

[Mr. Dunham will, I trust, pardon this imitation of his "alliteration's artful aid."]

Inspired, perhaps, by the nearness of the goal, and possibly by a desire to show them I could do it, I then proceeded to cut loose from the "hardy miners"; and, not long afterward, in the cool and sunny forenoon, stood high on the brow of the precipitous palisades leading into Council, which looked very attractive in what it promised and in its own strangely picturesque surroundings. Then followed a hurried descent to Melsing Creek, a fording of that little tributary, and, now in town, a search for the edifice which should bear the firm insignia. There it was, my name staring me in the face! Hastily mounting the three steps, if you please, which led to the front entrance of the new log cabin, I pounded the door, heard a familiar "Come in," and burst in upon my partner, looking as fine as a fiddle and in the very act of laying down the law to an unsuspecting client. Thus then, at last, after not a few vicissitudes, some seven thousand miles had been traversed and the *au revoir* of the year before realized in the present. It had been, of course, an easier undertaking than before, and at no time lacking in

interest; but the writer believes that, as regards the trip from Golovin Bay to Council City, the physical labor of the previous year was preferable to the lack of companionship in its successor.

VIII

THE COUNCIL CITY MINING DISTRICT—JOE RIPLEY AND OTHERS



OUR quarters consisted of an excellent twenty-by-sixteen cabin, made of whip-sawed spruce timber, the round log side of course being outside. Half of it, partitioned off, was devoted to our office—a very complete one, I may say, for Alaska. The other half, its wainscoting adorned with pans, pots, saws, hammers, and the like, and its shelves and box-cupboards holding various cooking and eating paraphernalia, answered the purposes of kitchen and dining-room combined. A platform four feet wide, and stretching across in the middle from wall to wall, formed the base of an isosceles triangle with the peak of the roof, and thereby made a loft or cache, convenient for storing provisions, etc. But, for the life of me, I could discover no provisions for storing ourselves at night. Immediately in the rear of the cabin was a tent, but that was filled with miscellaneous stuff, and evidently was not intended for sleeping purposes. At last the mystery was solved in looking behind an apparently unnecessary hanging of drill tapestry which covered my side of the partition, and discovering, neatly folded and caught up against the concealed wall, an excellent home-made bed or bunk, whose only springs, however, were the hinges from which it swung. Three fine, friendly dogs, now enjoying their summer vacation, loafed about the back door, near a sled upon which rested three old gold-

pans from which they fed. The cabin was but a little distance back of our old camping-place, the marks of which were still very evident, and it commanded a fine view of the tortuous river and the landscape beyond. The appearance of the camp had improved,—many new cabins and several more stores had sprung up,—but I could obtain no concrete explanation from my partner, its president or mayor, why, during my absence, the city's main thoroughfare had not been asphalted. My letters from the "outside" telling of the time of my departure, and those intrusted at Nome to pretended overland travelers, all came some time after my arrival, but I was, nevertheless, expected to appear upon the scene any day in early July.

In very short order I was again in the traces of Alaskan harness and developing with my partner a certain team-work in our household duties as well as in legal and mining matters. We were truly "hewers of wood and drawers of water," and we enjoyed excellent health, although we did our own cooking. Perhaps our best parlor trick was what we were pleased to term "the poetry of motion." This took place after the mahogany had been cleared for action, when one of us, presiding over a pan of hot water, fished out from under the soapy suds some utensil and passed it along to the other, who, accepting gracefully, gave it a polish in transit and flourished it onward to its allotted place. Toward the end of the season a neighborly little woman, the New England wife of a miner from Maine, brought us some pastry which delightfully suggested the land of the Puritans. She sympathetically remarked that she would have performed many similar acts had she known we were doing our own cooking. I must admit that we *bought* our bread. Before I left Council we were guests at a dinner-party given by this hospitable neighbor, and rarely have I enjoyed a meal more. The home was most comfortable and roomy, and we ate from pretty china which this little housewife had brought all the way from New England. This goes to show that people can now live comfortably and well in that remote country, if they only will.

The winter of course had been very long and tedious, and, in many ways, a most trying one; but it was surprising to learn how lightly clad one can

safely and comfortably move about with the thermometer ranging from 30° to 60° below zero. This is due to the dryness of the cold. For instance, at 30° below, and with no outer garments other than flannel shirt and overalls, one would perspire freely in chopping wood. With hands and feet warmly protected, and winter underwear and wind-proof outer clothes (drill coat and ordinary overalls), *and exercise*, one can comfortably weather a degree of cold which, in lower latitudes, would immediately transform him to an icicle. The snow had averaged on the level places about five feet in depth, but was very deep where it had drifted and been banked by the wind, making it a common thing to have to dig one's self out, or for a party to lend assistance in bringing to the light, if any there was, snow-buried men and women. The shortest day had given three and a half hours of dusky light; the coldest had forced the thermometer down to 60° below zero, where kerosene had frozen. Horses had to be killed on account of the absence of fodder; and, after having been left out a short time to freeze, one would chop them up with an ax for dog-food, the chips flying as if they were timber. Frequent salutations on the trail were such as, "Say, old man, your nose is frozen," which might bring forth the rejoinder, "So is yours"; whereupon both would rub snow upon the senseless point, and proceed onward. It was the continual wind, sometimes impossible to withstand, which worked the greatest hardship and fiendishly got upon the nerves. Old Tom Welch, whom I well remembered, and his partner, while trying to prospect in the snow, had been frozen to death; and there had been some talk of lynching the individual who had undertaken to supply them with provisions, upon whose failure to do so the two unfortunates had essayed to return to Council in a storm which had cost them their lives. Some others had met a like unnecessary fate. The natives and oldest white inhabitants unanimously agreed that it had been the most severe winter known; and it was an attested fact that many creeks in that region remained throughout the following summer hopeless ice and presented to the expectant miner a frozen face.

The freighters came in at midnight the day of my arrival; and by the noon following my twenty-odd pieces of freight and baggage, intact, were properly stored and distributed in and about our abode—a very great satisfaction indeed. Those fellows earned their three cents a pound all right. A little later in the season two very small and very light-draft stern-wheelers, referred to as "coal-oil Johnnies," plied intermittently between White Mountain and Council, as the condition of the streams allowed; but the usual and best-adapted means of transportation were long, shallow scows which a horse pulled up-stream freighted, and rode down upon empty.

This section of the country was now the Council City Precinct and Recording District, a subdivision of the Second Judicial Division, as designated by the Alaskan code. A United States commissioner, with liberal jurisdiction and a marshal at his back, supplanted our military tribunal and the mining recorder of the last year. With the exceptions that his jurisdiction in civil matters is limited to a certain amount, that he can neither grant an injunction nor try title to real estate, his powers, judicial and otherwise, are plenary and varied. For instance, in addition to his civil and extensive criminal jurisdiction, the commissioner is *ex officio* probate judge, coroner, notary public, mining recorder, and tier of matrimonial knots. In the latter capacity he is not overburdened with work, and having once tied, he has no authority to unloose. There is a section of the criminal code which in mining matters worked very salutary results. Under it an action of "criminal trespass" can be brought in the commissioner's court, in which the court may consider the record title, and, in proper cases, oust irresponsible "jumpers" or legal blackmailers, who may then, if they wish, in a legal way, seek a remedy in the District Court at Nome. We proceeded on several occasions under this section. If the defendant was found guilty, he was ejected from the premises by the marshal, and either paid his fine and costs or languished awhile in an unupholstered "jug." Although, naturally enough, he was in the country to better himself from the ground, and not primarily from his fees, our genial commissioner presided over his court with dignity,

fairness, and ability. I always made it a point to wear a necktie in appearing before his Honor. After a trial he might drop into our cabin; and, over a cigar and a little Scotch whisky, we would suggest wherein, in our opinion, he had erred in his rulings or decisions, to which presumptuous insinuations he would either good-naturedly assent or demur.

There was a lot doing. The District Court, though not appointing receivers, was grinding out injunctions, or temporary restraining orders, which, frequently conveyed by some legal luminary, came drifting over from Nome, and, in consequence, some poor devil or arrant rascal was thrown out of his job and summoned to appear at the metropolis. There was a pause, however, about the middle of August, when Judge Noyes pulled up stakes and sailed for the "outside" to prepare himself for his October ordeal before the Court of Appeals.

Not long after my arrival, a good fellow named Joe Brennan, while bringing his horses and freight up the rivers, was drowned some ten miles below Council. It was believed that he was swimming a horse, and that when the animal climbed the bank, Brennan fell off and, his boots filling, drowned. When the body was recovered, a few days later, it was brought to Council, a coroner's inquest held, and then decently buried. Northwestern Alaska furnishes excellent graveyards, rivaling the art of ancient Egypt. Its ground will preserve a man forever, but it is a long way for his friends and relatives to come to see him. A small amount of currency was found on Brennan; a poke of dust with which he was to execute certain commissions was identified and returned to its owner; but a considerable sum of money of his own, with which he was known to have left Nome, was missing. Doubtless the body had been robbed. But there are lots of good men in Alaska, although in the Nome country they seem to be pretty well scattered. Brennan's two partners, who came to consult us about the estate of the deceased, were such men—manly fellows who wanted to have "poor Joe's" property rights preserved. One of them came from Washington, my native city, with whom I could chat about familiar landmarks; the other, who looked the athlete, had held the New England championship for the high

jump, and had trained for that event several college men of my acquaintance. It is a well-worn phrase, but the world *is* very small. The Washingtonian was duly appointed special administrator, and soon realized funds on a sale of the horses, feed, provisions, etc., which were well within the legal definition of "perishable property."

Enjoying the proud distinction of being notaries public for Alaska, and being therefore quasi-judicial officers, we were frequently called upon to take acknowledgments, affidavits, and depositions. I am not likely to forget the work of taking an affidavit from one Joe Ripley. It was of immediate importance in litigation at Nome, and Ripley, a squaw-man, who lived with his Eskimo wife and children a number of miles down the stream, had been specially engaged to come up and make affidavit to certain matters with which he alone was familiar. As luck would have it, my partner, who was acquainted with Ripley, had been called away to euphonious Puckmummy Creek (Eskimo, "quick"), and it devolved upon me to take the affidavit. Ripley and whisky, I was informed, were always associated together,—were almost synonymous terms,—and whenever "Joe" struck town it was a gala day for the saloons. In abnormal condition, Mr. Ripley was a mild-mannered, polite, well-educated son of old England. But my hopes that he might appear in the latter condition were blasted when, in response to a shuffling and a bang at the door, I welcomed in a small man with white mustache, wearing the native coat or "parkie," and gloriously, triumphantly *full*! There was no doubt that this was Ripley—recipient of the Victoria cross for gallantry in India, sailor, miner, squaw-man, and devotee of the bottle. "Where's Castle?" was his opening remark, of course not knowing me from Adam; and, as I explained my presence, I racked my brain for delicate, unoffending language which should suggest that he sleep "it" off and call again on the morrow. The suggestion of delay brought forth a flow of noble sentiments, delivered in heroic attitude, accompanied by gestures dramatic. Pointing down the river, he burst forth in glowing language on the subject of the devoted spouse whom he longed to see, somewhat inconsistently declaiming, however, that the lady was twice as big as he and

usually shook the life out of him whenever he tacked home with several sheets in the wind. I eagerly seized upon this latter tribute to his charmer's charms as an argument for his remaining over, but realized that it was useless to argue when, with emphatic "No, no's", and a beating of his breast, he exclaimed: "Old Joe has a very small heart for white people, but" (stretching forth his arms in yearning affection toward the beloved) "his heart goes out to *her* like a bullock's." This was all very romantic and entertaining, but that affidavit had to be obtained, and Captain John Smith, somehow, had to be prevented from escaping to his Pocahontas. Excusing myself with the explanation that I would consult my client in the matter, I went on a still hunt for the man who might manage Ripley, and the latter, navigating his way toward the nearest saloon, went on a hunt for the still. I found my man, explained the situation, and instructed him, if impossible to detain Ripley, to steer him back to the office, where we should proceed with the ceremonies. Captain John having previously, when sober, told our client the facts to which he could swear, I purposed having these facts act as a check to a too willing or imaginative affiant. Shortly afterward, I heard the two men coming, cleared the deck for action, and braced myself for a delectable situation. It was a story of a "snow" location of mining property. The law requires that a certain fixed amount of work or expenditure shall be done or made annually upon every mining location for purposes of benefiting and developing the claim, and further provides that upon failure to do such "assessment work" the ground shall become open and relocatable on the 1st of January following. Hence many individuals single out what they believe to be valuable property, and acutely investigate the validity of its holder's title, nosing about the ground or searching through the records to ascertain, first, whether the work has been done; second, whether an affidavit of labor has been recorded; and, third, if the facts render such an affidavit of no effect (save only as *prima facie* evidence) and subject the affiant to a charge of perjury.

The legal requirements had not been fulfilled regarding the property in question; and on December 31, 1899, Ripley and Welch (before mentioned)

set out from Council, over the snow, for Crooked Creek, fifteen miles away. Before starting, they took the precaution to set their watches by the recorder's chronometer, for timepieces are very contradictory in Alaska, and it frequently happens that a number of relocators assemble at the same spot, watches in hand, near midnight of a December 31, prepared to drive down their stakes at the first moment of the new year, and of course it becomes a nice question of evidence as to who has the right time. The case in point certainly had not been lacking in dramatic incident. Welch and Ripley found others on the ground for whom no love was lost. It was not a trysting-place. Some underhand work was done, and Ripley, so he said, restrained old Tom from putting a bullet into a certain miscreant. But it was hard work to confine the enthusiastic Ripley to the material matters, and I had frequently to nail him down and shut him up until I wrote out a portion of the statement desired. He was acting it through, walking up and down, gesticulating, and, occasionally, falling into the native dialect. His favorite mode of brushing aside a suggestion—treating it as immaterial—was to exclaim: "That's all right, but it don't buy whisky"; and now and then he would suddenly turn upon the third man with the question, "Ain't she pretty?"—referring to his Pocahontas. Now, of all the hideously ugly creatures rated as human beings, the full-blooded Eskimo woman is easily the prize-winner, and Mrs. Ripley, besides, was notoriously unattractive even in her own class. It was, therefore, a very embarrassing question. My sense of professional dignity was continually outraged, but, in the end, I got a satisfactory affidavit, though it required nearly four hours to round it up. *In vino veritas*. Exit Ripley.

A word as to the natives of northwestern Alaska. I presume they as nearly approach living in a state of nature as any beings on the face of the earth. Of undoubted Mongolian origin, their ancestors drifted over from Siberia to an equally hard country where the sole occupation of their descendants is a hand-to-mouth struggle for existence, in obtaining for daily subsistence the scant provender which nature supplies ready-made. It is a matter simply of catching fish in their nets during the summer, and in winter

trapping the ptarmigan or wild grouse and hunting the walrus and the seal. Their boats, or "kyaks," made from walrus-hide and repaired with ivory, are very ingeniously contrived and cleverly managed. They are naturally a very peaceful people, except when, in violation of the law, the white man sells them whisky. They are godless and have no religion whatever, nor any form of worship, nor any imagery, nor any idea of a happy hunting-ground hereafter. They bury their dead in airy wooden biers several feet above the ground, together with pots and pans, food, guns and ammunition, their theory being that the deceased has lain down for a long sleep. Perhaps he may wake up sometime, and then he will need the means to procure and prepare food; and from his position he can see his family and friends when they come by, and note their prosperity as represented by the number of children and dogs. As a race, they are few and scattered, without attempt to live in tribal relation. The epidemics among them in 1900 of pneumonia and measles carried away perhaps half their number, and it is safe to predict that within a short period this hapless race will become extinct.

Later in July there came a welcome spell of hot weather, which melted the remaining snow upon the slopes and helped matters generally, giving one an opportunity, among other things, to sun his blankets. It not only did great work in thawing the ground, but it magnificently and quite unnecessarily thawed out the mosquitos. The latter, however, though bothersome at times and in places, were not very annoying. This hot wave, which practically prevented traveling during the middle of the day, gave way to cooler, overcast weather, which now and then furnished a series of rainy, disagreeable days, broken, perhaps, by one or two hopefully clear and beautiful. It is the most fickle climate in the world, and will frequently, within a few hours, fancifully exhibit all its contrary elements of rain and sunshine, wind and chill. But, rain or shine, day and night, mining operations progress, and the fine treasure in the earth is laboriously brought to light.

It frequently became necessary for one of us to journey through the now more sparse timber, up the slaty, moss-covered, mountainous "divide," and

over to the claims on the fast-becoming-famous Ophir Creek. In the absence of rain, and with the encouragement of the wind or a little sunshine, the ground, up to a certain point, dries remarkably soon, and furnishes fairly good footing. If the day be pleasant, the cheerful chirp of the inevitable song-sparrow and the song of the wild canary are heard; a thrush or robin, surprised and alarmed, starts from the brush; swallows and snow-white gulls from the sea circle over and about the streams; and odd, unfamiliar little birds hop about in the willows. How they get there, the Lord only knows. Beautiful—the daintiest—wild flowers in great variety also do their part to make a desolate country lovely. Truly, it is a wonderful land of contradictions. Looking down from the "divide" to the basin below, Ophir Creek, almost a river, is now dotted with permanent camps along its lengthy, sinuous course; the little log-cabin settlements, whose lumber has been brought there at great labor and expense, representing the larger operators or the companies.

Of course, Frank Shaw was still in charge of the Wild Goose Company's interests on claim No. 15 Ophir; and he had under him about a hundred good men, opening up the claim, shoveling the pay dirt into five strings of sluice-boxes, and some of them, teamsters, carpenters, etc., daily bringing supplies from Council over the primitive roads, or doing other necessary work about the camp. A very remarkable young man is Shaw, and a very fine fellow. Born and bred, so to speak, in the mines of California and Arizona, and having a genius for the work, he was naturally a "born miner," and, though only twenty-three years of age, was generally acknowledged to be the best in the Council City country. In a comparatively recent explosion in a quartz-mine, Shaw had been almost blown to pieces; and although he still carried in his face and body bits of the rock, and could see only through powerful glasses, he was, nevertheless, noted for his energetic zeal and indefatigable labor. The qualities which go to make a good miner are, perhaps, generally underestimated. He must, primarily, be a man of intelligence. He must have the eye of an engineer for turning a creek, constructing ditches, building dams, and meeting the exigencies of the

situation. He must know formation,—understand geology,—in order to locate the pay streak and operate it successfully. And he must know how to manage men. These qualities Shaw combined. For instance: The labor is divided into two ten-hour shifts, the day shift and the night shift, and not infrequently hardy men either have not the physique to endure the exhausting labor of pick and shovel or they "soldier" in their work. Men discharged for either of these reasons usually came to Shaw and, shaking his hand, acknowledged the corn, and asked him to look them up if he ever came to Montana, or wherever they lived.

I noted some familiar faces in the pits, among them those of the lusty men on the *St. Paul* with the uncongenial room-mate. On the steamer they had shown me with pride a skiff-shaped boat which they had had built in San Francisco especially for the Fish and Neukluk rivers; and I didn't then have the heart to tell them that they could not have obtained a boat more ill adapted to their purposes. They arrived at Council worn out, disgusted, and with only half the load with which they had started. And, having been told that their claim, ten miles above, was glaciated, without further ado or any idea of investigating it themselves, they sold out their remaining outfit, and went to work on "15" for wages. In this they showed much more stuff than the fellows who "lie down" immediately; and, having enough to get out on, go home and tell their friends that the country is a "fake." Many of these latter are the men who, on the way up, have fiercely declaimed to admiring audiences: "By God, sir, if I find any jumper on my claim, I've a six-shooter," etc. One of these brave boys, whom the ladies of the *St. Paul* had greatly admired, *did* find an interloper diligently working his Ophir Creek claim, whereupon he proceeded to auction off his plant and sneak out of town without so much as making me a social call.

They were cleaning up one string of sluice-boxes the first time I went to "15"; the water-gate in the ditch, into which a portion of the creek had been diverted, allowed only a gentle stream to flow through the huge boa-constrictor hose into the boxes and down over the riffles where the bronze-colored gold shone forth distinctly. The work of the day shift had ceased;

the men were at dinner; and Shaw and one of the shift bosses were carefully sweeping the result of a day's "run" into a gold-pan. This finished, I accompanied him and his burden to the little cabin which he and the bookkeeper occupied; and there found Billy West, looking sturdier after his winter sojourn in Alaska, and engaged in "blowing out" a pan of gold-dust—that is, eliminating the fine black sand. In reply to my query, he said that they tried to average five thousand dollars every twenty-four hours.

Old Jim, the excellent darky cook, gave me a cordial reception, which was even more effusive when I gave him a cigar. He chuckled when I asked him if he missed Mr. Sunnyside, his assistant of last season. I think that the way Jim expressed his feelings toward Sunnyside is worth recording. Sunnyside was a big, strapping Californian who had come up on the *Lane* the year before, by profession a lawyer, and doubtless regarded by the fond inhabitants of his native town as a future Daniel Webster. He aired a deep bass voice on the ship, and presented a very noble and manly figure as he held up his end of the quartet. As already observed, on the arrival of the fortune-hunters at Nome in 1900 there were no loose nuggets lying about waiting to be picked up, and, consequently, many of the confident newcomers were obliged to "come right down to hard-pan." And so it happened that Sunnyside abandoned the idea of practising law, and, later in the season, found himself assistant-general-utility man to old Jim at 15 Ophir. He soon developed into probably the most mournful, cheerless, pessimistic individual in the country, and gave vent to his feelings accordingly. The country was "God-forsaken" (as indeed it is); he suffered from several complaints on account of the miserable climate and the lack of a feather bed; and the days until his escape in the autumn seemed each one of a year's duration. One day, at dinner-time, when Sunnyside had sounded some dismal note, old Jim, good-naturedly enough, turned to him, and said: "Mr. Sunnyside, my feelings to'a'd you am very well expressed by the col'ed gen'leman who was divo'ced from his wife. Says he, 'Em'line, if I nebber see you again dat won't be any too *soon*.'" A roar of delighted appreciation went up from the double row of tables.

The roughing and hardships of the California forty-niners, who, bountifully supplied by nature on all sides, needed no cover at night other than the canopy of heaven, and who could work twelve months in the year, seem trifling compared with the conditions which the Alaska pioneers have confronted in a land disconsolately barren and inhospitable, that metes out a meager four-months season for their labor. To borrow again from Dunham, here were globe-travelers, men who had "panned from Peru to Point Barrow," now in August "cross-cutting a cussed cold creek," who would say, "There's no use telling the people at home about this country; they'd think you were lying." And so, in fact, it is a very difficult thing to undertake to do; for the reader or listener has really nothing relative to go by, and, of course, *atmosphere* is essential to an adequate appreciation and understanding.

The ultimate yield of the "gold of Ophir" Creek will be enormous and astonishing, justifying its right to a name famous from ancient times. But, as is generally true of northwestern Alaska, the claims in order to pay well must be (and they will be) owned and worked by large companies, able to incur a considerable preliminary expense to mine them properly and on a large scale. Now and then the individual will find a rich spot from which he and his partners may realize a few thousand dollars; but the palmy days of the Nome beach and the Topkok diggings are seemingly over, and, as most of the miners say, it is not a "poor man's country." And yet, as regards its wealth, hardly the surface has been scratched. Dredging companies have been formed to operate the gravel bars and the gold deposits in the beds of the streams; and there is excellent reason for believing that fortunes will be made in this way. An excellent indication of the stability and extent of the Council City District is the fact that the common currency is gold-dust. Every store and office has its gold-scales, and one must, for his own protection, be skilled in manipulating the delicate balances. Although an ounce of "clean" gold will average at the assayer's from eighteen to nineteen dollars, sixteen dollars is, in Alaska, the accepted current value. With this, therefore, as a standard,—a pennyweight being eighty cents and a

grain three and a third cents,—with accurate scales and proper weights, exchange is not a difficult matter.

Alaska has furnished a fertile field for unscrupulous schemers to enrich themselves at the expense of credulous investors. Hundreds of claims, which either did not exist or were not worth the paper upon which they were presented, have been sold to the gullible public, and corporations have been formed to make their stockholders quickly millionaires. Such a proposed donor of wealth was "The Polar Bear Mining Company," whose prospectus I had read and whose operations near Council were within my ken. This bonanza concern had a capital stock of one million shares, offered for sale at four cents a share, and its assets consisted of forty-seven wildcat claims upon which the prospectus dwelt at length in golden praise, declaring that "pay streaks" and "old channels" pervaded the entire bunch. "Alaska has made many millionaires—why not be one?" was the tenor of this masterpiece of seductive argument. After the season was well under way, the Polar Bear began to tear open the ground not far from Council; and soon afterward a party of some six or seven discouraged, disgusted, and disgruntled men trudged laboriously over the tundra, and camped near us, until they should learn from headquarters at Nome which other one of the forty-seven claims should similarly be drained of its treasure. But no word came, and there they remained abjectly despondent as the dreary days dragged by. One evening my partner and I strolled over to where they were gathered in dismal silence about a small fire, engaged in brushing away the mosquitos, and looking generally miserable. They appeared to be farmers masquerading as miners. There had been defection in the camp, due to a controversy as to who was the "captain," and in consequence the circle was depleted. Speaking of this lamentable fact, one of them, who resembled a shoemaker out of employment, said apologetically (but he was proud of it): "Now, I don't want to seem to be stuck up or conceited, but *I'm* the boss here—I'm the *secretary* of the company." "How much did it cost you?" we queried. "Well," he said, "I didn't pay anything to be secretary, but I put twenty-one hundred dollars in the company." At this of course we roared,

and soon had the outfit, despite their misery, laughing themselves while we recited choice bits from the glowing prospectus. Before departing, the "secretary" earnestly besought us not to tell anybody about his investment, and resignedly admitted that the laugh was on him.

Later, in August and during the first part of September, the nights were clear and bright and cold. A beautiful full moon, dominant in the brilliant starry heavens, almost made day of night, and added luster and weird charm to the picturesque meanderings of the river. The north star was viewed at closer range, and shone sparkling more nearly overhead. Icicles, as long as one's arm, formed in stalactite fashion, hung from the sluice-boxes in the small hours of the morning; but, nevertheless, aided by the light of lanterns, the work of mining went on as regularly as clockwork. The days were mild and sunny,—like October in New England,—and there was promise of a late working autumn, though the wild geese and sand-hill cranes with hoarse cry were flying southward.

One fine Sunday morning I said farewell to my friends at Council, several of whom requested me to think of them when I was "dining at the Waldorf"; and as my partner had decided again to winter it through and hold things down, I left behind me a courageous, cultured, and able gentleman, whose good judgment and varied mental attainments the community, appreciative as heretofore, would enjoy throughout the white silence.

IX

THE OPERETTA AT DEXTER'S—NOME CITY OF TO-DAY

ARRIED down the rivers to White Mountain with Tom Muckle, the freighter, the horse having a free ride and nibbling at the brush when the



eddies drew the scow to the banks, I spent the night at that intermediate point; and, in the morning, in a "coal-oil Johnny," proceeded on my way to Golovin Bay. This last-named means of transportation was a very ridiculous affair, but was strictly a "get-there" contrivance. It was a narrow skiff, about twenty feet long, into which an antiquated gasoline-engine had been placed, which caused the little pair of patched-up paddle-wheels to beat the water with a great deal of vehemence and send the open skimming-dish over the water at a delightfully progressive rate of speed. The captain, engineer, and crew consisted of a grizzled anatomy bearing the densest growth of underbrush in the way of beard, whiskers, and general facial hirsuteness that the writer has ever gazed upon. It had the nose of a human being, which bore the signs of conflict with the elements, and brilliantly registered a long course of fiery internal applications. But he was a nice old fellow, who wanted to get back to his home in southeastern Alaska, and envied me my departure. Arrived at Chenik, I put up at Dexter's Hotel, a pretentious and comfortable structure recently erected by that pioneer of northwestern Alaska.

At dinner, doubtless in order to make me feel "at home," I was engaged in conversation by a stout female person rather pretentiously attired, who proved to be the housekeeper of the hotel. At least forty-five summers had added successive weight to her proportions, and the only delicate thing about her was her sensibility—and this I knew because, in effect, she told me so. It was so trying for a woman to be alone in Alaska, and how astonished her people at home would be to see what she had to put up with—one who had been reared, so to speak, in the lap of luxury. It made her homesick to hear that I was heading for New York, whose gay metropolitan life, I somehow felt I was to infer, she had enjoyed in days gone by. This engaging creature, in a softly modulated voice, quite impressively selected her words,—the longer the better,—and the fact that they were not always appropriate to the thought was absolutely immaterial so long as the sentences were rounded and sonorous. For instance, in speaking of the

ability of the commissioner at Chenik, judging from her association with lawyers (and she had always known the very best), she hardly believed that he possessed a "judiciary" mind. In reply to her leads, I said that I had just come from Council, and that I was an attorney; but, in answer to her query whether I had made my "stake," with great discretion I forbore to boast of the fortune secreted about my person, remarking that in Alaska one employed his profession as an opening-wedge for mining interests, and that as yet my mines were in a state of development. This elicited the information that she felt similarly as to *her* profession; and when I made bold to inquire what that profession might be, I was slightly staggered by the rejoinder, "The operetta." Now, if she had said *opera*, it wouldn't have been so bad, for one associates with the opera something grand, massive, and substantial; but she didn't fit in with "operetta" at all. It was a rude shock, later in the evening, when I saw "Little Casino" standing by the bar and drinking her whisky straight. Then I felt sure that the dear ones at home would have been sorrowfully, painfully astonished thus to see their little one, whom, perhaps, they fondly imagined softening and delighting with song and merriment the rugged natures of the rough miners.

It would have been asking too much of Alaskan weather to be allowed to journey on as far as Nome without some setback. This was soon apparent when a storm of wind and rain came up which held me at Chenik for three long and dismal days. It blew as it can blow only in Alaska. The wind literally drove nearly all the water out of the shallow bay, so that one morning the unusual sight of a beach and bar extending almost across to the other side presented itself. I very vividly recall one evening at that forlorn place, when the renowned Dexter himself and a crowd of satellites and bar-room loafers were gathered about the table playing a game of "freeze-out" poker. Business was slack, and the urbane bartender, whom the favored addressed as "Eddie," and who, arrayed in a pink-and-white sweater, was wont to flourish behind the bar, admiring himself in the glass and brushing his slick hair between drinks, was one of the select party. It was a terrible night outside. The men, now and then during a pause, would voluntarily

remark, or interrogate one another, as to where they'd like to be,—in what city, restaurant, or theater,—or (one fellow in particular, and for my special benefit) would predict that the storm was likely to continue for a week or more. The howl of the wind, which the Malemute dogs tried to rival, suddenly found another competitor, which, dirge-like, a whooping sort of wail, accompanied by the moans and groans of a pedal organ in agony, was traced to the story above. It was the "operetta" in action—perhaps thinking of home. At any rate, she felt badly; and the crowd showed its sympathy by a raising of voices and yowling like the dogs outside, and wondering what she had eaten for dinner to cause such evidences of pain and suffering.

On the *Elmore*, which still had a monopoly of the traffic, I reached Nome at last, and repaired to the Golden Gate Hotel, which, razed to the ground by fire during the winter, had risen phoenix-like from the ashes, a credit in structure and appointment to almost any community. With its boarded streets, excellent water-supply, cold-storage plants, fire-engine department, long-distance telephones, railroad to the Anvil Creek mines, and projected electric-light system, Nome has indeed become a city. As a matter of fact, the social atmosphere of Nome now demands a white collar and a shoe-shine. Wonderful when one thinks of its geographical situation, almost in the Bering Strait, three thousand miles from any port of supply, scarcely one hundred and fifty from Siberia, in a cheerless, Arctic country, barren of everything save gold! When the telegraph line from the Klondike to St. Michaels is finished, the cable, which has already been laid, will carry it through the remaining one hundred and fifty miles, and Nome will then daily, in all seasons, be in touch with the outside world.

I met Captain Baldwin, a prominent and useful citizen, who was selecting characteristic photographs to put in an album, as a gift to President McKinley from the citizens of Nome. And this was on the day of the President's death. The terrible news of the assassination I did not learn until I reached Port Townsend, in Puget Sound, September 26, when the hollow shout of the news-vender, "McKinley dead and buried," considerably lessened the pleasure of home-coming. The mayor of Nome had recently

made a trip to Canton in advocacy of the removal of Judge Noyes, and the President's questions as to how the people of the Nome region lived had suggested the appropriateness of the intended gift.

The mines near Nome had been and were "showing up" well. Old channels were being discovered, and it was generally admitted that more gold was in sight than ever before. There had recently been found on Anvil Creek the largest nugget which Alaska had yet produced. This was on exhibition; and I elbowed my way through the camera fiends to heft the boulder-like mass, which weighed ninety-seven ounces, or a little over eight pounds (troy), and was worth \$1552. I have been informed that another nugget, slightly larger, was discovered in the same vicinity soon afterward. It is not improbable that, when the creeks shall have been worked out by the present methods of sluicing, quite as much additional wealth will be accumulated from the debris by hydraulic operations. The great richness of the country lies in the "benches,"—creek flats and hillsides,—and to operate them successfully great ditches are being constructed. For instance, on Ophir Creek the Wild Goose Company now has under way a ditch, paralleling the creek, twelve miles long and twelve feet wide, which eventually will extend twelve miles further, to the mouth of the stream. It was surprising to see a number of engines and plants of various kinds operating the beach, which gave the lie to the general belief that the sands had been wholly exhausted. Despite the severe handicap of a late spring, the mining season averaged well, and the output of the yellow metal probably equaled that of the year previous. The reports concerning the new Kougark and Bluestone districts, which had been heralded as "wonders" and attracted thousands, of course proved to be exaggerated, and caused great disappointment, although they are known to contain a few rich creeks and may some day be worked on a large scale.

I ran across several of the "nobility" and also the "Divine Healer." The former appeared less chipper, and the latter looked less benign. Their large interests were centered in the mining districts aforesaid. The "Café de Paris," enlarged and refitted, would grace any metropolis. Its cuisine and

service were excellent, and it was furnished with all the up-to-date conveniences and appurtenances, including, as heretofore, a count. Among the features of Nome are the licensed town-criers, who parade the main street from early morn till late at night, calling out and advertising with original variations the various restaurants, entertainments, and sailings of steamers, for which services they are very well paid. At this time there were two steamers in the roadstead, and tickets to Seattle were selling like hot cakes. The crier for one of these vessels—a young, clean-cut-looking fellow, evidently well educated, and possessed of a sense of humor and a splendid voice—was creating a good deal of amusement by his form of appeal. After extolling the magnificence and speed of the ship, with solemn mien and clear, resonant tenor voice he called out in the crowded thoroughfare: "Get your tickets back to mother and the old farm, you hungry, homesick placer-miners." This latter mode of address was of course highly flattering to the host of bar-room loafers.

The Cape Nome excitement has yielded an abundant harvest to the transportation companies; and, in the main, the treatment which they have accorded their passengers has been outrageous—in some instances even piratical. This I know not only from accounts of trustworthy persons, but also from my own observation. Vessels have been making the long and hazardous trip which should be condemned equally with their owners. Narrow escapes from complete disaster have not been infrequent, and persons who in good faith have bought first-class accommodations have gone aboard to find that they have been *second* purchasers, and, in overcrowded ships, have been obliged to resort to the floor for sleep, and to bribery of the stewards for decent food. Many a chapter of horrors incredible could be detailed by unfortunate participants in the Nome travel. It was with astonishment and genuine regret that I read in a recent Nome paper of the suicide of my cabin-mate on the *St. Paul*, the pleasant Knight of the Green Table. Despondent, he had deliberately shot himself through the head. He was a general favorite, "square" in his "profession," and his untimely end was widely regretted.

X

THE END OF THE CONSPIRACY—A WORD FOR ALASKA



FTER having served only three months of his year's sentence, on the plea of ill health and through strong political influence, Alexander McKenzie had been pardoned by the President, and was again free to descend, if he chose, upon the mining fraternity of Cape Nome. But he showed excellent judgment in returning to his Dakota constituency. The Court of Appeals, in its opinion in the McKenzie contempt cases, had in effect declared that an outraged community had patiently endured injuries unparalleled in the history of American jurisprudence, and that the people were entitled to high praise for their abstinence from forcible resistance. Apropos of this, the then senior senator from South Dakota, in his defense in the Senate of McKenzie and Noyes, had engaged the attention of that body in a tirade against the honorable court. During the winter, people had been brooding over their grievances, and when spring came there was frequent mention of "necktie" parties and "shotgun" excursions, in a way that carried conviction of settled purposes. As a further inducement to Mr. McKenzie to seek other spheres of activity and usefulness, the Circuit Court of Appeals had made orders, and appointed an officer to serve them, requiring Judge Noyes, Mr. Wood, the district attorney, Mr. Geary, the lawyer and ex-Congressman who had advised and defended McKenzie, and one Frost, a special agent from the Department of Justice at Washington, to appear in San Francisco in October, 1901, and show cause why they, too, should not be punished for contempt of court. After all, there was something to be admired in the bold dash and forceful ability of the arch conspirator. Alexander McKenzie might have reigned supreme until the successful realization of the scheme

or conspiracy had he been assisted by a more efficient and less bungling corps of lieutenants.

Judge Noyes, having given a scant day's notice to the bar, departed from Nome in August, 1901, adjourning his court until November, and leaving legal matters in a state of great confusion. The favored, however, immediately prior to his departure, had obtained his ready signature to various orders and injunctions; and shortly before the vessel weighed anchor there was a stream of small boats plying between the shore and the maritime court, whose passengers were obtaining what came to be known as "deep-sea injunctions." As a result of a number of conflicting orders which Judge Noyes had made pertaining to a certain disputed mining claim, a body of masked men some time later endeavored by force of arms to drive away the parties in possession, in consequence of which there was bloodshed and enrichment of the hospital.

Two petitions—one from the general public, the other from the lawyers—were sent to the President seeking the removal of Judge Noyes and the appointment of a suitable man in his stead. The latter petition, signed almost universally by the bar, characterizes Judge Noyes as "weak," "vacillating," "dilatory," "careless," "negligent," "partial," and "absolutely incompetent." It should carry additional weight by reason of the moderation of its language. In September, having received his instructions through Attorney-General Knox, Judge Wickersham, of the Third Judicial Division of Alaska, opened a term of court during the interregnum period; and, having entered upon his duties with ability and despatch, soon gained the confidence of the community by a number of prompt, clear-cut decisions.

The United States Circuit Court of Appeals, on the sixth day of January, 1902, filed its opinion and judgment in the contempt cases of Arthur H. Noyes, C.A.S. Frost, Thomas J. Geary, and Joseph K. Wood. The opinion of the court was delivered by Judge Gilbert, and there are concurring opinions by Judges Ross and Morrow, which, however, are stronger and more severe in their expressions than the prevailing opinion.

After reviewing the history of the proceedings which have heretofore been set forth, and commenting upon the further evidence received on the trial, Judge Noyes is adjudged guilty of contempt of court in that he not only refused to compel McKenzie to obey the writs, but, on the other hand, made orders which prevented their enforcement. In view of the fact that he holds a public office, Noyes's sentence consists of a mere fine of one thousand dollars. As to Geary, the lawyer, the court states that there is not sufficient evidence to convince it beyond a reasonable doubt that he was guilty of contempt, and the charge against him is dismissed. Wood, the district attorney, is adjudged guilty, and is sentenced to four months' imprisonment in the county jail of Alameda County, California. Frost, the special agent from the Department of Justice, who (as the evidence discloses), soon after his arrival at Nome, became an assistant district attorney, and, later, Judge Noyes's private secretary, and who spent government money in behalf of the conspirators, is likewise found guilty of contempt of court, and is sentenced to imprisonment for twelve months in the county jail.

Judge Ross in his concurring opinion says:

"I am of the opinion that the records and evidence in the cases show beyond any reasonable doubt that the circumstances under which and the purposes for which each of those persons committed the contempt alleged and so found were far graver than is indicated in the opinion of the court, and that the punishment awarded by the court is wholly inadequate to the gravity of the offenses. I think the records and evidence show very clearly that the contempts of Judge Noyes and Frost were committed in pursuance of a corrupt conspiracy with Alexander McKenzie and with others, not before the court and therefore not necessary to be named, by which the properties involved in the suits mentioned in the opinion, among other properties, were to be wrongfully taken, under the forms of law, from the possession of those engaged in mining them, and the proceeds thereof appropriated by the conspirators. For those shocking offenses it is apparent that no punishment that can be lawfully imposed in a contempt proceeding

is adequate. But a reasonable imprisonment may be here imposed, and I am of the opinion that, in the case of the respondent Arthur H. Noyes, a judgment of imprisonment in a county jail for the period of eighteen months should be imposed, and in the case of Frost a like imprisonment of fifteen months.... I think Wood should be imprisoned for ten months.... In regard to the respondent Geary, I agree with the finding of the court to the effect that the contempt alleged against him is not sufficiently established."

Judge Morrow concurs in the findings contained in the opinion of Judge Gilbert, and adds: "In my judgment the evidence establishes the fact that there was a conspiracy between the respondent Noyes, McKenzie, and others to secure possession of certain valuable mining claims at Nome, Alaska, under proceedings involving the appointment of a receiver, for the purpose of working the properties and obtaining the gold deposited in the claims. To carry these proceedings to a supposed successful conclusion, Noyes, McKenzie, and others found it a necessary part of the scheme to resist the process of this court. In pursuance of this conspiracy, the contempt charged against Noyes was committed; but I agree with Judge Gilbert that this conspiracy is outside the charge of contempt, and in view of the fact that the respondent Noyes holds a judicial position, I concur in his judgment that the respondent be required to pay a fine of one thousand dollars."

A giant conspiracy indeed, far-reaching in its ramifications, which received its death-blow in the arrest and sentence of Alexander McKenzie, and which may be said to have had its proper interment in the recent adjudication of the Circuit Court of Appeals. It only remains for the President to remove from office the judge who has so flagrantly disgraced the federal bench, and to appoint a successor under whose administration of justice a marvelous mineral region will develop with rapidity and confidence.^[1]

As this book goes to print, renewed efforts are being made in the United States Senate, by Messrs. Hansbrough and McCumber of North Dakota, to

"vindicate" McKenzie and Noyes. The present method of vindication appears to consist mainly in attacking the intelligence and integrity of the three eminent jurists who constitute the United States Circuit Court of Appeals for the Ninth Circuit.

The credit for relieving northwestern Alaska of this judicial-receiver curse belongs to three equally essential factors: first, Charles D. Lane, president of the Wild Goose Company, who had the courage to fight the "ring" to a finish without compromise; second, Samuel Knight, of the San Francisco bar, through whose ability and aggressiveness the matter was properly and clearly brought before the appellate court; third, the Circuit Court of Appeals for the Ninth Circuit, which promptly and fearlessly redressed, so far as lay within its power, the wrongs that had been perpetrated among an outraged people. And, be the truth known, this has been accomplished in the face of great indifference and strong opposition at Washington.

Uncle Sam's record in Alaska has not been one to be proud of. A taxed, unrepresented people, who, under the greatest adversities, have shown to the world the enormous and varied resources of a supposedly barren land, have for years had to bear the additional burden of incompetent and unscrupulous officials who have been foisted upon the country. The rush to Cape Nome has attracted attention to only a comparatively insignificant portion of Alaska, and emphasized but one of the treasures in its vast, unexplored storehouse.

In the north and east, and over by the Canadian border-line, is the world-famous Klondike region. Fifteen hundred miles distant to the west, close to Siberia, are the Nome gold-fields. Southeast are found seemingly inexhaustible quartz-gold mines, the greatest salmon-fisheries in the world, and a climate and soil which will make agriculture possible and profitable. And away to the south and west are immense forests, mines of copper, and the Pribilof Islands, the home of the fur-seal. Within the boundaries of Alaska there lies a country incomprehensible in its extent and difficulties,

inconceivable in the possibilities of its latent wealth. The marvelous discoveries of gold at Cape Nome, which have entailed so much hardship and scandal, bringing riches to many and disappointment to more, will at least have worked a highly beneficent result in bringing earlier to light the neglect and needs of our wonderful Alaska.

FOOTNOTES

[\[1\]](#) As this book is going through the press, the announcement is made from Washington, February 23, that, upon the recommendation of the Attorney-General, the President has removed Judge Noyes from office.

*** END OF THE PROJECT GUTENBERG EBOOK THE LAND OF
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